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HARVARD LAW REVIEW

THE BOUNDARIES OF RACE: POLITICAL GEOGRAPHY IN LEGAL ANALYSIS

Richard Thompson Ford

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ARTICLE

THE BOUNDARIES OF RACE:
POLITICAL GEOGRAPHY IN LEGAL ANALYSIS*Richard Thompson Ford**

American jurists and legal scholars often assume that local governments are mere administrative conveniences that exist at the pleasure of state legislatures, and that local boundaries are entirely arbitrary and largely inconsequential. At the same time, the same people often treat local governments as if they were sacrosanct, "natural" entities. In this Article, Professor Ford exposes the equivocation that underlies the American law of local government, and traces it back to a tension between two opposing conceptions of "political space."

This conceptual equivocation is more than an academic embarrassment — it has profound consequences for race relations in America. Drawing on an economic model, Professor Ford demonstrates that, in a world in which racism had been eliminated, institutional inattention to the political character of space would result in the perpetuation of racial segregation with all of its attendant problems. What follows is a detailed discussion of the Supreme Court's local-government jurisprudence, from which it appears that the Justices' inability to sort out their conceptions of political space has a very real, and disturbing, impact on the life of the nation. Nor is the problem confined to the courts — it is also reflected in the normative political principles that inform judicial decisionmaking. But though the legal situation is troubled, Professor Ford is hopeful that it is not beyond repair. He identifies legal precedent for a sophisticated approach to the complexities of political space that could go some way toward solving the problem. The Article concludes with a series of proposals intended to show how the courts and the country might begin to chart a course toward the ideal of a racially desegregated society.

During the 1970s and 1980s a word disappeared from the American vocabulary. . . . The word was segregation.

DOUGLAS S. MASSEY & NANCY A. DENTON,
AMERICAN APARTHEID¹

* Assistant Professor of Law, Stanford Law School. A.B. Stanford University; J.D. 1991, Harvard Law School. This Article is dedicated to the memory of Professor Dwight Greene, whose thoughtful comments helped me find my voice in these pages.

The Reginald Lewis Fellowship and Harvard Law School have made it possible for me to research and to write this Article. Thanks to the following people for their help: the participants in the 1993 Critical Race Theory Workshop, at which I presented an early draft of this Article, Kwame Anthony Appiah, John Calmore, Henry Finder, Gerald Frug, Henry Louis Gates, Jr., Lani Guinier, Frank Michelman, Martha Minow, Randall Kennedy, Joseph Singer, Edward Soja, David Wilkins, and especially Duncan Kennedy for his extraordinary commitment to this project. Special thanks to Richard D. and Nancy T. Ford for more than I could ever express.

¹ DOUGLAS S. MASSEY & NANCY A. DENTON, *AMERICAN APARTHEID: SEGREGATION AND THE MAKING OF THE UNDERCLASS* 1 (1993).

INTRODUCTION

It is now passé to speak of racial segregation. In an America that is facing the identity crisis of multiculturalism, where racial diversity seems to challenge the norms and values of the nation's most fundamental institutions, to speak of segregation seems almost quaint. The physical segregation of the races would seem to be a relatively simple matter to address; indeed many believe it has already been addressed. Discrimination in housing, in the workplace, and in schools is illegal. Thus it is perhaps understandable that we have turned our attention to other problems, on the assumption that any segregation that remains is either vestigial or freely chosen. But even as racial segregation has fallen from the national agenda, it has persisted. Even as racial segregation is described as a natural expression of racial and cultural solidarity, a chosen and desirable condition for which government is not responsible and that government should not oppose, segregation continues to play the same role it always has in American race relations: to isolate, disempower, and oppress.

Segregation is oppressive and disempowering rather than desirable or inconsequential because it involves more than simply the relationship of individuals to other individuals; it also involves the relationship of groups of individuals to political influence and economic resources. Residence is more than a personal choice; it is also a primary source of political identity and economic security.² Likewise, residential segregation is more than a matter of social distance; it is a matter of political fragmentation and economic stratification along racial lines, enforced by public policy and the rule of law.

Segregated minority communities have been historically impoverished and politically powerless. Today's laws and institutions need not be explicitly racist to ensure that this state of affairs continues — they need only to perpetuate historical conditions. In this Article, I assert that political geography — the position and function of jurisdictional and quasi-jurisdictional boundaries³ — helps to promote a racially separate and unequal distribution of political influence and economic resources. Moreover, these inequalities fuel the segregative effect of political boundaries in a vicious circle of causation: each condition contributes to and strengthens the others. Thus, racial segregation persists in the absence of explicit, legally enforceable racial

² "Housing denotes an enormously complicated idea. It refers to . . . a specific location in relation to work and services, neighbors and neighborhood, property rights and privacy provisions, income and investment opportunities . . ." HOUSING IN AMERICA: PROBLEMS AND PERSPECTIVES 3 (Roger Montgomery & Daniel R. Mandelker eds., 2d ed. 1979).

³ By "quasi-jurisdictional boundaries" I mean the boundaries that define private entities that perform "governmental" functions. These entities, which exercise all the relevant power of governments, constitute an important part of political geography. See *infra* pp. 1880-85.

restrictions. Race-neutral policies, set against an historical backdrop of state action in the service of racial segregation and thus against a contemporary backdrop of racially identified space — physical space primarily associated with and occupied by a particular racial group — predictably reproduce and entrench racial segregation and the racial-caste system that accompanies it. Thus, the persistence of racial segregation, even in the face of civil rights reform, is not mysterious.

This Article employs two lines of analysis in its examination of political space. The first demonstrates that racially identified space both creates and perpetuates racial segregation. The second demonstrates that racially identified space results from public policy and legal sanctions — in short, from state action — rather than being the unfortunate but irremediable consequence of purely private or individual choices. This dual analysis has important legal and moral consequences: if racial segregation is a collective social responsibility rather than exclusively the result of private transgressions, it must either be accepted as official policy or be remedied through collective action.

Part I argues that public policy and private actors operate together to create and promote racially identified space and the racial segregation that accompanies it. In support of this assertion, I offer a hypothetical model to demonstrate that even in the absence of individual racial animus and *de jure* segregation, historical patterns of racial segregation would be perpetuated by facially race-neutral legal rules and institutions. I conclude the discussion in Part I by arguing that the significance of racially identified political geography escapes the notice of judges, policymakers, and scholars because of two widely held yet contradictory misconceptions — one that assumes that political boundaries have no effect on the distribution of persons, political influence, or economic resources, and another that assumes that political boundaries define quasi-natural and prepolitical associations of individuals. As we shall see, these two assumptions lead jurists and policymakers to believe that segregated residential patterns are unimportant to the political influence and economic well-being of communities, and that such residential patterns are beyond the proper ambit of legal and policy reform. These beliefs are often unstated, but they inform judicial decisions and the political and sociological analyses that underlie those decisions.

Part II demonstrates how racially identified space interacts with facially race-neutral legal doctrine and public policy to reinforce, rather than to eliminate gradually, racial segregation. Legal analysis oscillates between two contradictory conceptions of local political space, which correspond to the two misconceptions of space described in Part I. One regards local jurisdictions as geographically defined delegates of centralized power, administrative conveniences without autonomous political significance. The other treats local jurisdictions

as autonomous entities that deserve deference because they are manifestations of an unmediated democratic sovereignty. The first account avoids examination of the potentially segregated character of local jurisdictions by denying them any legal significance; the second, by reference to their democratic origins, or by tacit analogy to private property rights, or both. Thus, legal authorities that subscribe to either of these accounts never confront the problems posed by the many jurisdictions that are segregated or that promote racial segregation and inequality.

Two competing normative analyses mirror the doctrinal oscillation between the conception of local governments as agents of state power and the conception of local governments as self-validating political communities. One holds that local governments are powerless creatures of the state and prescribes greater autonomy for them. The other insists that local governments are powerful autonomous associations and advocates bringing the "crazy quilt" of parochial localities under centralized control.

The private law discussion in Part II explores parallels between cities and large, privately controlled concentrations of property. Because private as well as public institutions create and maintain racially identified spaces, and because both do so through the coercive power of government, it is impossible to segregate the "public" inputs, or state action, from the "private," or non-governmental, factors. A comprehensive policy of desegregation must confront both so-called "public" and "private" structures of racialized space.

Part III offers a provisional "map" or vision of a racially desegregated city and society. The Part first examines two competing theoretical perspectives on democracy in an effort to provide a normative framework for the legal analysis examined in Part II. One, which I will label "interest group pluralism," argues that democracy should be conceived of as a conflict between groups that compete for power in a political marketplace. The other, "republicanism," argues that democracy should be a forum in which citizens come together to debate ideas and ultimately to reach consensus.

Part III also returns to the original focus on race relations and suggests that the characteristic oscillation in local government doctrine informed by democratic theory is related to a particularly American conflict between the goals of racial and cultural assimilation on the one hand and separatism on the other. Neither assimilation nor separatism is fully acceptable, and race-relations theorists tend to waver between the two. The reification of political space thus mirrors a reification of race in American thought: either race is assumed to be irrelevant, merely the unfortunate by-product of an ignoble American past and a retrograde mentality, or it is assumed to be natural and primordial, a genetic or biological identity that simply is unamenable to examination or change.

Finally, Part III attempts to mediate the characteristic conflicts between local parochialism and centralized bureaucracy, pluralist competition and republican dialogue, and racial assimilation and racial separatism. In Part III, I sketch a few concrete reforms that might serve as the foundation of a racially desegregated society, and argue that the location of the politics of difference must be the metropolis, the political space in which the majority of Americans now reside, work, and enjoy recreation, and in which individuals confront racial, cultural, and economic differences. Against the nostalgia of the whole and the one, the "pure" homogeneous community, we should strive for the achievable ideal of the polyphonous democratic city.

I. CONCEPTIONS AND CONSEQUENCES OF SPACE

A. The Construction of Racially Identified Space

Segregation is the missing link in prior attempts to understand the plight of the urban poor. *As long as blacks continue to be segregated in American cities, the United States cannot be called a race-blind society.*

DOUGLAS S. MASSEY & NANCY A. DENTON,
AMERICAN APARTHEID⁴

This Article focuses primarily on residential segregation and on the geographic boundaries that define local governments. Although these are not the only examples of racially identified space, they are so intimately linked to issues of political and economic access that they are among the most important. Residence in a municipality or membership in a homeowners association involves more than simply the location of one's domicile; it also involves the right to act as a citizen, to influence the character and direction of a jurisdiction or association through the exercise of the franchise, and to share in public resources. "Housing, after all, is much more than shelter: it provides social status, access to jobs, education and other services"⁵ Residential segregation is self-perpetuating, for in segregated neighborhoods "[t]he damaging social consequences that follow from increased poverty are spatially concentrated . . . , creating uniquely disadvantaged environments that become progressively isolated —

⁴ MASSEY & DENTON, *supra* note 1, at 3 (emphasis added).

⁵ Rachel G. Bratt, Chester Hartman & Ann Meyerson, *Editors' Introduction to CRITICAL PERSPECTIVES ON HOUSING* at xi, xviii (Rachel G. Bratt, Chester Hartman & Ann Meyerson eds., 1986) (quoting Emily P. Achtenburg & Peter Marcuse, *Towards the Decommodification of Housing: A Political Analysis and a Progressive Program*, in *AMERICA'S HOUSING CRISIS* 202, 207 (Chester Hartman ed., 1983)).

geographically, socially, and economically — from the rest of society.”⁶ Local boundaries drive this cycle of poverty.

Both public and private actors laid the groundwork for the construction of racially identified spaces and, therefore, for racial segregation as well. Explicit governmental policy at the local, state, and federal levels has encouraged and facilitated racial segregation. The role of state and local policies in promoting the use of racially restrictive covenants is well known; less well known is the responsibility of federal policy for the pervasiveness of racially restrictive covenants. The federal government continued to promote the use of such covenants until they were declared unconstitutional in the landmark decision *Shelley v. Kraemer*.⁷ Federally subsidized mortgages often *required* that property owners incorporate restrictive covenants into their deeds.⁸ The federal government consistently gave black neighborhoods the lowest rating for purposes of distributing federally subsidized mortgages.⁹ The Federal Housing Administration, which insured private mortgages, advocated the use of zoning and deed restrictions to bar undesirable people and classified black neighbors as nuisances to be avoided along with “stables” and “pig pens.”¹⁰

Not surprisingly, “[b]uilders . . . adopted the [racially restrictive] covenant so their property would be eligible for [federal] insurance,”¹¹ and “private banks relied heavily on the [federal] system to make their own loan decisions [T]hus [the federal government] not only channeled federal funds away from black neighborhoods but was also responsible for a much larger and more significant disinvestment in black areas by private institutions.”¹² Although the federal government ended these discriminatory practices after 1950, it did nothing to remedy the damage it had done or to prevent private actors from perpetuating segregation until much later.¹³

⁶ MASSEY & DENTON, *supra* note 1, at 2; *see also* ROBERT STAPLES, *THE URBAN PLANTATION: RACISM & COLONIALISM IN THE POST CIVIL RIGHTS ERA* 203–09 (1987) (arguing that segregation in ghettos is responsible for black poverty and despair).

⁷ 334 U.S. 1 (1948).

⁸ *See* CHARLES ABRAMS, *FORBIDDEN NEIGHBORS: A STUDY OF PREJUDICE IN HOUSING* 234–35 (1955).

⁹ Federal mortgage underwriters were more concerned about racial demographics than they were about any other demographic trend. *See* KENNETH T. JACKSON, *CRABGRASS FRONTIER: THE SUBURBANIZATION OF THE UNITED STATES 198–99* (1985); MASSEY & DENTON, *supra* note 1, at 52.

¹⁰ ABRAMS, *supra* note 8, at 231; *see also* MASSEY & DENTON, *supra* note 1, at 50–53 (describing the practice of redlining).

¹¹ Martha Mahoney, Note, *Law and Racial Geography: Public Housing and the Economy in New Orleans*, 42 STAN. L. REV. 1251, 1258 (1990).

¹² MASSEY & DENTON, *supra* note 1, at 52.

¹³ *See* MARK I. GELFAND, *A NATION OF CITIES: THE FEDERAL GOVERNMENT AND URBAN AMERICA, 1933–1965*, at 221 (1975).

Racial segregation was also maintained by private associations of white homeowners who "lobbied city councils for zoning restrictions and for the closing of hotels and rooming houses . . . [,] threatened boycotts of real estate agents who sold homes to blacks . . . [, and] withdrew their patronage from white businesses that catered to black clients."¹⁴ These associations shaped the racial and economic landscape, and implemented what might well be described as public policies, by private fiat. Thus, private associations as well as governments defined political space.

*B. The Perpetuation of Racially Identified Spaces:
An Economic/Structural Analysis*

The history of public policy and private action in the service of racism reveals the context in which racially identified spaces were created. Much traditional social and legal theory imagines that the elimination of public policies designed to promote segregation would eliminate segregation itself, or would at least eliminate any segregation that can be attributed to public policy and leave only the aggregate effects of individual biases (which are beyond the authority of government to remedy).¹⁵ This view fails, however, to acknowledge that racial segregation is embedded in and perpetuated by the social and political construction of racially identified political space.

1. *Trouble in Paradise: An Economic Model.* — Imagine a society with only two groups, blacks and whites,¹⁶ differentiated only by morphology (visible physical differences).¹⁷ Blacks, as a result of

¹⁴ MASSEY & DENTON, *supra* note 1, at 36.

¹⁵ See, e.g., 2 U.S. COMM'N ON CIVIL RIGHTS, ISSUES IN HOUSING DISCRIMINATION 4 (1986) (reporting the suggestion of Richard F. Muth, Chairman of the Department of Economics at Emory University, that the main cause of residential segregation is "that whites are willing to pay more for the occupancy of real property provided they reside in the vicinity of other whites").

¹⁶ Although this Article's primary focus is on the position of blacks within a racially segregated political geography, much of the analysis herein will also be applicable to other racial minority groups. Nonetheless, black segregation is far more pronounced than the segregation of any other racial group. See Douglas Massey & Nancy Denton, *Trends in Residential Segregation of Blacks, Hispanics and Asians: 1970-1980*, 52 AM. SOC. REV. 802, 823 (1987). Moreover, racial segregation is an especially important factor in contributing to the concentration of poverty among blacks in particular. See Douglas S. Massey & Mitchell L. Eggers, *The Ecology of Inequality: Minorities and the Concentration of Poverty, 1970-1980*, 95 AM. J. SOC. 1153, 1185-86 (1990). Therefore my analysis will be of the greatest significance to black segregation.

This Article will use terms such as "racial minority" or "people of color" when its analysis has broader applicability, and will use more limiting terminology when the empirical or historical context is limited to a particular group. The goal throughout is to limit the object of the analysis whenever necessary and to leave open the possibility of broad applicability whenever appropriate.

¹⁷ Race, in this hypothetical, is probably best thought of as caste: differences between whites and blacks, although immediately recognizable, are founded purely on socio-economic distinc-

historical discrimination, tend, on average, to earn significantly less than whites. Imagine also that this society has recently (during the past twenty or thirty years) come to see the error of its discriminatory ways. It has enacted a program of reform that has totally eliminated legal support for racial discrimination and, through a concentrated program of public education, has also succeeded in eliminating any vestige of racism from its citizenry. In short, the society has become color-blind. Such a society may feel itself well on its way to the ideal of racial justice and equality, if not already there.

Imagine also that, in our hypothetical society, small, decentralized, and geographically defined governments exercise significant power to tax citizens, and use the revenues to provide certain public services (such as police and fire protection), public utilities (such as sewage, water, and garbage collection), infrastructure development, and public education.

Finally, imagine that, before the period of racial reform, our society had in place a policy of fairly strict segregation of the races, such that every municipality consisted of two enclaves, one almost entirely white and one almost entirely black. In some cases, whites even reincorporated their enclaves as separate municipalities to ensure the separation of the races. Thus, the now-color-blind society confronts a situation of almost complete segregation of the races — a segregation that also fairly neatly tracks a class segregation (because blacks earn, on average, far less than whites, in part because of their historical isolation from the resources and job opportunities available in the wealthier and socially privileged white communities).

We can assume that all members of this society are indifferent to the race of their neighbors, co-workers, social acquaintances, and so forth. However, we must also assume that most members of this society care a great deal about their economic well-being and are unlikely to make decisions that will adversely affect their financial situation.

Our (hypothetical) society might feel that, over time, racial segregation would dissipate in the absence of *de jure* discrimination and racial prejudice. But let us examine the likely outcome under these circumstances. Higher incomes in the white neighborhoods would result in larger homes and more privately financed amenities, although public expenditures would be equally distributed among white and black neighborhoods within a single municipality. However, in those municipalities that incorporated along racial lines, white cities would have substantially superior public services (or lower taxes and the same level of services) than the "mixed" cities, because of a higher

tions, not on cultural or linguistic divisions. Of course, race as caste is a simplification, but not so gross a one that it does not provide a useful analogy.

average tax base. The all-black cities would, it follows, have substantially inferior public services or higher taxes as compared to the mixed cities. Consequently, the wealthier white citizens of mixed cities would have a real economic incentive to depart, or even secede, from the mixed cities, and whites in unincorporated areas would be spurred to form their own jurisdictions and to resist consolidation with the larger mixed cities or all-black cities. Note that this pattern can be explained without reference to "racism": whites might be color-blind and yet prefer predominantly or entirely white neighborhoods on purely economic grounds, as long as the condition of substantial income differentiation obtains.

Of course, simply because municipalities begin as racially segregated enclaves does not mean that they will remain segregated. Presumably blacks would also prefer the superior public service amenities or lower tax burdens of white neighborhoods, and those with sufficient wealth would move in; remember, in this world there is no racism and there are no cultural differences between the races — people behave as purely rational economic actors. One might imagine that, over time, income levels would even out between the races, and blacks would move into the wealthier neighborhoods, while less fortunate whites would be outbid and would move to the formerly all-black neighborhoods. Hence, racial segregation might eventually be transformed into purely economic segregation.

This conclusion rests, however, on the assumption that residential segregation would not itself affect employment opportunities and economic status. But because the education system is financed through local taxes, segregated localities would offer significantly different levels of educational opportunity: the poor, black cities would have poorer educational facilities than the wealthy, white cities. Thus, whites would, on average, be better equipped to obtain high-income employment than would blacks. Moreover, residential segregation would result in a pattern of segregated informal social networks; neighbors would work and play together in community organizations such as schools, PTAs, Little Leagues, Rotary Clubs, neighborhood-watch groups, cultural associations, and religious organizations. These social networks would form the basis of the ties and the communities of trust that open the doors of opportunity in the business world.¹⁸ All other things being equal, employers would hire people

¹⁸ See Philip Kasinitz, *The Real Jobs Problem*, WALL ST. J., Nov. 26, 1993, at A8 ("The primary reason for ghetto unemployment is . . . the absence of social networks that provide entry into the job market."). Recently, scholars have begun to study and to refer to the value of social networks, under the name "social capital." Professor Robert Putnam describes social capital as "ties, norms, and trust transferable from one social setting to another. . . . [A] vigorous network of indigenous grassroots associations can be as essential to growth as physical investment, appropriate technology, or . . . 'getting prices right.'" Robert D. Putnam, *The Prosperous Community: Social Capital and Public Life*, AM. PROSPECT, Spring 1993, at 35, 38.

they know and like over people of whom they have no personal knowledge, good or bad; they would hire someone who comes with a personal recommendation from a close friend over someone without such a recommendation. Residential segregation would substantially decrease the likelihood that such critical social connections would be formed between members of different races. Finally, economic segregation would mean that the market value of black homes would be significantly lower than that of white homes; thus, blacks attempting to move into white neighborhoods would, on average, have less collateral with which to obtain new mortgages, or less equity to convert into cash.¹⁹

Inequalities in both educational opportunity and the networking dynamic would result in fewer and less remunerative employment opportunities, and hence lower incomes, for blacks. Poorer blacks, unable to move into the more privileged neighborhoods and cities, would remain segregated; and few, if any, whites would forego the benefits of their white neighborhoods to move into poorer black neighborhoods, which would be burdened by higher taxes or provided with inferior public services. This does not necessarily mean that income polarization and segregation would constantly increase (although at times they would), but only that they would not decrease over time through a process of osmosis. Instead, every successive generation of blacks and whites would find itself in much the same situation as the previous generation, and in the absence of some intervening factor, the cycle would likely perpetuate itself. At some point an equilibrium might be achieved: generally better-connected and better-educated whites would secure the better, higher-income jobs and disadvantaged blacks would occupy the lower status and lower-wage jobs.

Thus, even in the absence of racism, race-neutral policy could be expected to entrench segregation and socio-economic stratification in a society with a history of racism. Political space plays a central role in this process. Spatially and racially defined communities perform the "work" of segregation silently. There is no racist actor or racist policy in this model, and yet a racially stratified society is the inevitable result. Although political space seems to be the inert context in which individuals make rational choices, it is in fact a controlling structure in which seemingly innocuous actions lead to racially detrimental consequences.

¹⁹ See STAPLES, *supra* note 6, at 204-05 ("[A] house in a predominantly black neighborhood is devalued by thousands of dollars [B]lacks receive 1.2 percent of their income from property, compared with seven percent for whites."); Scott Minerbrook, *Blacks Locked out of the American Dream*, BUS. & SOC'Y REV., Sept. 22, 1993, at 26 ("In 1988, the U.S. Census Bureau concluded that white families had ten times the wealth of blacks in America. Crucially, 40 percent of that difference was the lack of home equity between black and white families.").

2. *Strangers in Paradise: A Complicated Model.* —

[Even u]nder the best of circumstances, segregation undermines the ability of blacks to advance their interests because it provides . . . whites with no immediate self-interest in their welfare. [Furthermore,] a significant share [of whites] must be assumed to be racially prejudiced and supportive of policies injurious to blacks.

DOUGLAS S. MASSEY & NANCY A. DENTON,
AMERICAN APARTHEID²⁰

If we now introduce a few real-world complications into our model, we can see just how potent the race/space dynamic is. Suppose that (only) half of all whites in our society are in some measure racist or harbor some racial fear or concern, ranging from the open-minded liberal, who remains somewhat resistant, if only for pragmatic reasons, to mixed-race relations (Spencer Tracy's character in *Guess Who's Coming to Dinner*²¹) to the avowed racial separatist and member of the Ku Klux Klan. Further suppose that the existence of racism produces a degree of racial fear and animosity in blacks, such that (only) half of blacks fear or distrust whites to some degree, ranging from a pragmatic belief that blacks need to "keep to their own kind," if only to avoid unnecessary confrontation and strife (Sidney Poitier's father in *Guess Who's Coming to Dinner*), to strident nationalist separatism.²² Let us also assume that significant cultural differences generally exist between whites and blacks.

In this model, cultural difference and socialization would further entrench racial segregation. Even assuming that a few blacks would be able to attain the income necessary to move into white neighborhoods, it is less likely that they would wish to do so. Many blacks would fear and distrust whites and would be reluctant to live among them, especially in the absence of a significant number of other blacks. Likewise, many whites would resent the presence of black neighbors and would try to discourage them from entering white neighborhoods in ways both subtle and overt. The result would be an effective "tax"

²⁰ MASSEY & DENTON, *supra* note 1, at 160.

²¹ GUESS WHO'S COMING TO DINNER (Columbia Pictures 1967).

²² I choose the "mild" ends of the continuum with some purpose: I suspect that the optimism reflected in *Guess Who's Coming to Dinner* is shared by very few members of contemporary America. Although the attitudes of the young couple's parents were portrayed as outdated and perhaps a bit ignoble, I imagine that many parents faced with the prospect of their child entering a mixed marriage would experience similar concerns today. It seems impossible to separate purely pragmatic concerns (the strife that the couple will experience in both white and black communities, and the fear that the attraction of one or both parties may be based on fetishism rather than love) from racist prejudices (blacks' mistrust of, and feelings of moral superiority to, whites, and whites' feelings of moral and social superiority to blacks, as well as cultural misunderstanding and otherness).

on integration. The additional amenities and lower taxes of the white neighborhood would often be outweighed by the intangible but real costs of living as an isolated minority in an alien and sometimes hostile environment. Many blacks would undoubtedly choose to remain in black neighborhoods.²³

Moreover, this dynamic would produce racially *identified* spaces. Because our hypothetical society is now somewhat racist, segregated neighborhoods would become identified by the race of their inhabitants; race would be seen as intimately related to the economic and social condition of political space. The creation of racially identified political spaces would make possible a number of regulatory activities and private practices that would further entrench the segregation of the races. For example, because some whites would resent the introduction of blacks into their neighborhoods, real estate brokers would be unlikely to show property in white neighborhoods to blacks for fear that disgruntled white homeowners would boycott them.²⁴

Even within mixed cities, localities might decline to provide adequate services in black neighborhoods, and might divert funds to white neighborhoods to encourage whites with higher incomes to enter or remain in the jurisdiction. Thus, although our discussion has focused primarily on racially homogeneous jurisdictions with autonomous taxing power, the existence of such jurisdictions might affect the policy of racially heterogeneous jurisdictions, which would have to compete with the low-tax/superior-service homogeneous cities for wealthier residents. This outcome would be especially likely if the mixed jurisdictions were characterized by governmental structures that were resistant to participation by grassroots community groups or that were otherwise unresponsive to the citizenry as a whole. A dynamic similar to what I have posited for the homogeneous jurisdictions would occur *within* such racially mixed jurisdictions, with neighborhoods taking the place of separate jurisdictions.

Each of these phenomena would exacerbate the others, in a vicious circle of causation.²⁵ The lack of public services would create a

²³ See John O. Calmore, *To Make Wrong Right: The Necessary and Proper Aspirations of Fair Housing*, in *THE STATE OF BLACK AMERICA* 1989, at 77, 99 (Janet Dewart ed., 1989) (reporting that 85% of blacks preferred a neighborhood that was at least half black, and only 3% preferred a "mostly white" neighborhood).

²⁴ Real estate brokers accused of steering prospective black buyers away from white neighborhoods consistently cite fear of reprisal by white property owners as the reason for the practice. See J. Linn Allen, *Civil Wrongs; As Blacks Go House Hunting, Too Often the Door Is Closed*, CHI. TRIB., Nov. 14, 1993, § 16, at 1 (recounting the experience of a real estate agent who was ordered to steer a black couple away from housing by the developer); J. Linn Allen, *Signs of Change; Real Estate Industry Tackles Entrenched Racism*, CHI. TRIB., Nov. 21, 1993, § 16, at 3 (reporting a realtor's argument that "real estate agents can be victims of buyer or seller bias as well as participants in discriminatory acts").

²⁵ See GUNNAR MYRDAL, *AN AMERICAN DILEMMA: THE NEGRO PROBLEM AND MODERN*

generally negative image of poor, black neighborhoods: inadequate police protection would lead to a perception of the neighborhoods as unsafe; uncollected trash would lead to a perception of the neighborhoods as dirty, and so forth. Financial institutions would redline black neighborhoods — refuse to lend to property owners in these areas — because they would be likely to perceive them as financially risky. As a result, both real estate improvement and sale would often become unfeasible.²⁶

3. *Strangers in a Strange Space.* — One might object that our model has ignored the existence of private developers who would find it profitable to build affordable housing in the white jurisdictions. These developers would be able to sell or to lease housing to blacks who would then reap the benefits of the higher tax base of their new jurisdiction. Developers would find such a venture profitable because blacks would be willing to pay a “premium” for such housing on account of the lower taxes or superior public services that come with it. Developers would have access to sufficient funds to purchase property in white neighborhoods although the individual blacks to whom they eventually sell or lease might not. The developers would indirectly pool the resources of many blacks, thereby taking advantage of an economy of scale.²⁷

This mechanism might succeed in integrating localities and neighborhoods but for one additional real-world complication: the zoning power. Localities with the power to regulate land uses might limit the construction of multi-family housing and moderately priced detached units to certain areas of town, or might even exclude such development altogether.²⁸ Localities would have a strong incentive to exclude such uses to keep lower-income individuals from diluting the

DEMOCRACY 642-44 (1944) (describing the connection between black segregation and unequal economic opportunity and political influence); cf. Charles R. Lawrence III, *Minority Hiring in AALS Law Schools: The Need for Voluntary Quotas*, 20 U.S.F. L. REV. 429, 432-37 (1986) (noting social segregation and financial poverty as two of the compounding obstacles to minority lawyers seeking academic appointment).

²⁶ Lending discrimination is rampant in contemporary America despite its illegality. See, e.g., Paulette Thomas, *Blacks Can Face a Host of Trying Conditions in Getting Mortgages*, WALL ST. J., Nov. 30, 1992, at A1, A8-A9 (presenting empirical data that reveals a consistent racial bias in lending, regardless of the income, credit history or geographic location of prospective borrowers). Moreover, if redlining were done on the basis of class instead of race, it would not violate any of the racially neutral laws in our hypothetical society.

²⁷ Similarly, blacks might pool their money in order to establish cooperative housing in the white neighborhood. The private developer is, however, more likely to attempt such a project because of transaction costs and the difficulties blacks face in obtaining financing.

²⁸ See, e.g., *Village of Arlington Heights v. Metropolitan Hous. Dev. Corp.*, 429 U.S. 252, 270-71 (1977) (holding that a village could zone to prohibit multi-family housing within its borders despite disparate racial impact); see also *infra* pp. 1872-74.

municipal tax base.²⁹ Again, a purely economic motivation would result in the exclusion of blacks from the municipality.

4. *Conclusion: The Implications for Racial Harmony.* — Empirical study confirms the existence of racially identified space.³⁰ The foregoing economic model demonstrates that race and class are inextricably linked in American society, and that both are linked to segregation and to the creation of racially identified political spaces. Even if racism could be magically eliminated, racial segregation would be likely to continue, as long as we begin with significant income polarization and segregation of the races. Furthermore, even a relatively slight, residual racism severely complicates any effort to eliminate racial segregation that does not directly address political space and class-based segregation.

One might imagine that racism could be overcome by education and rational persuasion alone: because racism is irrational, it seems to follow that, over time, one can argue or educate it away.³¹ The model shows that even if such a project were entirely successful, in the absence of any further interventions, racial segregation would remain indefinitely.³²

²⁹ See Harold A. McDougall, *Regional Contribution Agreements: Compensation For Exclusionary Zoning*, 60 TEMP. L.Q. 665, 669 (1987) (arguing that exclusionary zoning provides an economic benefit to the wealthier jurisdictions of a metropolitan area); cf. Note, *Equalization of Municipal Services: The Economics of Serrano and Shaw*, 82 YALE L.J. 89, 106-08 (1972) (noting that individual movement between jurisdictions creates fiscal externalities, due to the difference between the individual's tax contribution and her consumption of local resources).

³⁰ As Massey and Denton report:

The intense isolation imposed by segregation has been confirmed [by a study of poor blacks.] . . . [O]ne theme consistently emerged in the narratives: poor blacks had extremely narrow geographic horizons. Many . . . had never been into . . . the city's center and a large number had never left the immediate confines of their neighborhood. . . . [T]his racial isolation 'is at once real, in that movement outside the neighborhood is limited, and psychological, in that residents felt cut off from the rest of the city.' . . . [R]esidents of hypersegregated neighborhoods . . . rarely travel outside the black enclave and most have few friends outside the ghetto.

MASSEY & DENTON, *supra* note 1, at 161. In 1980, 10 U.S. cities had segregation indices in excess of 80, meaning that "the average black person in these cities lived in a neighborhood that was at least 80% black." *Id.* at 160.

³¹ See, e.g., Gary Peller, *Race Consciousness*, 1990 DUKE L.J. 758, 772-75 (describing the "integrationist" position as in line with the "liberal" belief in the power of rational thought to overcome irrationality, and the corresponding belief that racism will be eliminated in the crucible of rational education and debate).

³² Moreover, there are good reasons to believe that the continued existence of segregation threatens the project of anti-racist education in at least two ways. First, the perpetuation of racially identified spaces with impoverished tax bases might be taken to provide evidence that black neighborhoods are inherently bad places to live and, by extension, that blacks must be bad neighbors. This perception can be expected to thwart the liberal project of education by providing "evidence" that perhaps racist beliefs are justified, that black culture is somehow inherently inferior or dysfunctional, or that blacks are incapable of managing their affairs. Second, because segregated localities are generally responsible for administering education, it is

Contemporary society imposes significant economic costs on non-segregated living arrangements. In the absence of a conscious effort to eliminate it, segregation will persist in this atmosphere (although it may appear to be the product of individual choices). The structure of racially identified space is more than the mere vestigial effect of historical racism; it is a structure that continues to exist today with nearly as much force as when policies of segregation were explicitly backed by the force of law. This structure will not gradually atrophy because it is constantly used and constantly reinforced.

C. Toward a Legal Conception of Space

A whole history remains to be written of *spaces* — which would at the same time be the history of *powers* (both these terms in the plural) — from the great strategies of geo-politics to the little tactics of the habitat, . . . passing via economic and political installations.

MICHEL FOUCAULT, THE EYE OF POWER³³

There is no self-conscious legal conception of political space. Most legal and political theory focuses almost exclusively on the relationship between individuals and the state. Judges, policymakers, and scholars analogize decentralized governments and associations either to individuals, when considered vis-à-vis centralized government, or to the state, when considered vis-à-vis their own members, but consider the development, population and demarcation of space to be irrelevant. Space is *implicitly* understood to be the inert context *in* which, or the deadened material *over* which, legal disputes take place.

Legal boundaries are often ignored because they are imagined to be either the product of aggregated individual choices or the administratively necessary segmentation of centralized governmental power. This representation of boundaries, and hence, of politically created space, allows us to imagine that spatially defined entities are not autonomous associations that wield power. At the same time, space also serves to ground both governmental and associational entities. We imagine that the boundaries that define local governments and private concentrations of real property are a natural and inevitable function of geography and of a commitment to self-government or private property. These two views of political geography justify judicial failures to consider the effect of boundaries and space on racial segregation.

However, the development, population, and demarcation of space — those characteristics that must be considered irrelevant in order for

reasonable to assume that the perspective of blacks will rarely, if ever, be voiced in the education of white children.

³³ MICHEL FOUCAULT, *The Eye of Power*, in *POWER/KNOWLEDGE* 146, 149 (Colin Gordon ed., Colin Gordon, Leo Marshall, John Mepham & Kate Soper trans., 1980).

space to be seen as merely the aggregation of individual choices or the organizing medium of centralized power — are precisely the characteristics that distinguish spaces politically and economically. Localities define spaces as industrial, commercial, or residential. Homeowners associations define spaces according to density and type of development. Zoning and covenanting prescribe who can occupy certain spaces. This spatial differentiation is what I mean by the “political geography of space.” Features such as these — features that are not primordial or natural, but at the same time *are* inherently spatial because they distinguish one space from another — are the product of collective action structured by law.

1. *A Brief History of Space.* — We often imagine that cities develop naturally³⁴ in a space that is naturally present, and are then “discovered” by the law. Although cities are the product of human volition, we see their evolution in space as a phenomenon that results from “natural” forces: economies of scale and market forces, aggregated individual preferences, and physical space itself — topography and distance. As a result of this naturalizing view of political geography, “theories are constructed which always seem to mask social conflict and social agency, reducing them to little more than the aggregate expression of individual preferences Lost from view are the deeper social origins of spatiality, its problematic production and reproduction, its contextualization of politics, power, and ideology.”³⁵

One manifestation of the naturalizing view is a (mis)conception of political geography³⁶ as “opaque”: we cannot “see inside” political space to perceive the social institutions that define and comprise it.³⁷ Rather than a recognition that political geography is itself defined by political struggles and social forces, this view produces the belief that geography can anchor or legitimate an otherwise contested or indeterminate community or political entity. But, just as modern physics has challenged the rigid Newtonian conception of space, so too a

³⁴ The “naturalizing” that I identify as an element of the dominant misconceptions of space is not necessarily primordial (although it may be). It can also include such socially “natural” forces as economic market forces and the supposedly inevitable thrust of legal reasoning. Economics and preferences are reified and naturalized in the context of political geography even though few theorists today believe that they are natural, and indeed most take pains to avoid the mistake of reification in other contexts.

³⁵ EDWARD W. SOJA, *POSTMODERN GEOGRAPHIES* 123–24 (1989).

³⁶ I will use the terms “political space” and “political geography” more or less interchangeably throughout this Article.

³⁷ On the opaque conception of political space, “space in the general or abstract sense [is thought to] represent the objective form of matter This essentially physical view of space has . . . tended to imbue *all things spatial* with a lingering sense of primordality and physical composition, an aura of objectivity, inevitability, and reification.” SOJA, *supra* note 35, at 79 (emphasis added).

modern study of political geography should reject the assumption that space is determinate in political geography. Space, as we experience it, is in many ways the product, and not the fixed context, of social interactions, ideological conceptions, and of course, legal doctrine and public policy. "Space in itself may be primordially given, but the organization, and meaning of space is a product of social translation, transformation, and experience."³⁸

The tacit understanding of political space as "opaque" — inert, primordial, natural, and therefore having a natural or prepolitical meaning — stands in contrast to the opposite misconception of space as "transparent": we "see through" political geography, failing to see its political salience. In this alternative view, "[s]patiality is reduced to a mental construct alone, a way of thinking . . . in which the 'image' of reality takes epistemological precedence over the tangible substance and appearance of the real world."³⁹ Transparent space is understood to be irrelevant, both superseded in importance by the modern technologies of transportation and communication, and insignificant and without consequences of its own.

The critique of the opaque conception of space is, in part, a critique of the *reification* of political space — treating an abstract concept as if it were a tangible thing in the world. Thus, although political space is a function of our idea of boundaries, we imagine that those boundaries are natural, that they are something other than and prior to our idea of where they should be. The reification of political space is the product, not of a false theory that is articulated in case law and policy analysis, but of the failure to examine political space at all. The critique of the transparent conception of space reveals the opposite error. Rather than reification, here the mistake is to assume that our ideological constructs have no tangible consequences, that they are "just ideas." We imagine that political boundaries do not affect anything in the material world, that they are simply lines on a map. It is important to keep both criticisms in mind: it is wrong to assume that geographic boundaries are natural or inevitably reflect objective phenomena in the world, but it is equally wrong to ignore the consequences of those boundaries once they are established.

So we have not one, but two tacit conceptions of space — space as opaque and space as transparent. On the one hand, we often implicitly see political space as natural and fixed. On the other hand, and often at the same time, we see political space as irrelevant. Doctrine and policy often assume both that particular political aspects of a spatial entity are the inherent property or immediate consequences of the space that defines the entity and are therefore beyond dispute,

³⁸ *Id.*

³⁹ *Id.* at 125.

and also that the shape and location of the spatial entity are of no real consequence and therefore need not be examined or justified.

2. *The Tautology of Community Self-Definition.* — Space, as a salient characteristic of political entities, masks the often inherently segregated nature of these entities even as it entrenches that segregation. In order to understand why this is so, consider an association that is not spatially defined. Such an association must be defined by particular criteria that can be examined, criticized, and challenged. These criteria also distinguish the association from the mere aggregation of individual member preferences. Even if members are empowered to alter the criteria through a democratic process, the initial selection of membership will affect the outcome of subsequent elections. Thus, although the governance of such an association may be democratic in form, it may well not be democratic ("of the people") in substance if the initial selection of members was highly exclusive. If those excluded from the association claim a right to join, the association cannot justify their exclusion on the basis of democratic rule. Nor can the justification for such an association be that it has a right to self-definition, because the "self" that seeks to define is precisely the subject of dispute.

This tautology of community self-definition is masked when a group can be spatially defined: "We are (simply) the people who live in area *X*." Space does the initial work of defining the community or association and imbues the latter with the air of objectivity, and indeed, of primordially. But the tautology is *only* masked, it is not resolved: why should area *X* be the relevant community, when area *X* plus *Y* might provide an equally or more valid definition of community? The answer cannot appeal to the right of community self-determination: if the people in area *Y* claim to be part of a larger community, *X* plus *Y*, then should their opinion not be considered as well as that of the people in area *X*? It is the question how communities are and should be defined that concerns us here. Close attention to spatial construction will help us to break free of established but untenable definitions of political community and thereby to open new avenues for combatting entrenched structures of residential segregation. I begin by examining the construction of political space and the consequent construction of racially identified space in both public and private law.

II. THE DOCTRINAL CONTEXT OF POLITICAL SPACE

A. The Consequences That Space Hides: Racial and Class Segregation in Public Policy

Doctrine involving local governments oscillates between transparent and opaque conceptions of political space, which correspond to

particular conceptions of local governments. The conception of space as transparent corresponds to a view of local governments as mere delegates of state power, without autonomy or independent political significance. The conception of space as opaque corresponds to a view that sees local governments as autonomous sovereigns, or that analogizes local governments to private citizens, regarding them as unproblematically unified and self-validating entities, with rights against both outsiders and centralized authority. Local government is significant for our examination of racial segregation because an important source of segregation and of the isolation and oppression of minorities that accompany it, is the autonomous municipality that forms a racially homogeneous jurisdiction.⁴⁰

This section demonstrates that contemporary local government law perpetuates the historically imposed segregation of the races: local boundaries, once established, are difficult to alter; segregated localities form autonomous political units whose internal political processes tend to replicate existing demographics; wealthier localities have strong economic incentives to enact policies of exclusionary zoning to maintain homogeneity of class and therefore of race; and, each of these factors tends to reinforce the others.

A central and recurring conflict in our discussion of the political geography of race is that between the values of community control (which plays out in the notion of a local political community and also in the private right to association), individual autonomy (which plays out in geography through the private property right), and majoritarian rule.⁴¹ As the tautology of community self-definition demonstrates,

⁴⁰ Academics have noted the critical role that suburban incorporation plays in perpetuating segregation:

In the suburbs surrounding places such as Newark and Detroit, white politicians are administratively and politically insulated from black voters in central cities, and they have no direct political interest in their welfare Because suburbanites now form a majority of most state populations — and a majority of the national electorate — the 'chocolate city-vanilla suburb' pattern of contemporary racial segregation gives white politicians a strong interest in limiting the flow of public resources to black controlled cities.

MASSEY & DENTON, *supra* note 1, at 158.

⁴¹ Similarly, legal theory is characterized by two views: one of local government as the proper location of a responsive, citizen-based democracy, and the other of local government as the site of parochialism, bigotry, and fragmentation that threaten the public good and the stability of the republic. The first portrays local government as powerless and calls for greater local autonomy, while the second depicts local government as too powerful and proposes centralization of control in the hands of state or regional administrations. Those who adhere to the first view focus on the formal status of local governments and on their inability to shape and to control their future. See, e.g., Gerald E. Frug, *The City as a Legal Concept*, 93 HARV. L. REV. 1059, 1062-73 (1980) (arguing that local governments are so powerless under state and federal law that they are unable to resolve their internal problems on a local level). Those who adhere to the second view focus instead on local power to ward off external forces of change, be they other localities, the state, or market forces. See, e.g., Richard Briffault, *Our Localism: Part II*

the autonomy of a political community cannot be justified by appeal to either individualism⁴² or majoritarianism (unless the community is coextensive with the relevant universe of citizens). One significant way in which the law seeks to reconcile majoritarianism with community autonomy is through the creation of a space for decentralized authorities,⁴³ both public and private. This space is conceptual — in the context of the right to association and the law of corporations — and also physical — in the context of local governments and private property rights. But the grant of local power and the location of jurisdictional boundaries cannot, on pain of circularity, be justified by appeal to local autonomy. Thus, the law often tacitly seeks to justify local power and local boundaries by reference to geography itself — reflecting a view of local political geography as natural and legitimating, or in other words, as opaque.

The legal status of local governments is non-circularly validated by reference to the constitutionally established state government: the official status of local government is that of a mere delegate of the state. However, the view of local government as delegate cannot provide local governments with any true autonomy. If local government is only a delegate, then all local concerns are really state concerns, all local policies really state policies, all local citizens really only state citizens, and all local elections really sub-state elections. Citizens can have no right to reside in a particular locality (or any locality at all), and they can have no right to control their locality's character. If citizens are deprived of local citizenship or local autonomy, their only recourse is to urge the state, from which local authority flows, to address them. Thus, this transparent view of local political space, while saving local government from a circular justification and a reified self-conception, sacrifices the very goal to which local government aspires: to provide relief from the tyranny of majoritarianism

— *Localism and Legal Theory*, 90 COLUM. L. REV. 346, 435–54 (1990) (arguing that local power exacerbates the tension between cities and suburbs and that state governments should exercise greater control over administration and fiscal resources).

⁴² The institution of private property has historically been justified as a mechanism for safeguarding individual autonomy from a potentially coercive state. See Frank Michelman, *Possession v. Distribution in the Constitutional Idea of Property*, 72 IOWA L. REV. 1319, 1329 & n.60 (1987) (asserting that early American political theorists believed that “an unquestionably secure base of material support was viewed as indispensable if one’s independence and competence as a participant in public affairs was to be guaranteed”); cf. Margaret Radin, *Property and Personhood*, 34 STAN. L. REV. 957, 977–79 (1982) (arguing for a conception of property that is linked to personal autonomy).

⁴³ It may occasionally seem that I use the terms “decentralized power,” “spatial association,” and “autonomous” or “local power” (and other combinations thereof), interchangeably. This is inevitable because a central sub-thesis of this essay is that private associations exercise governmental power and, conversely, that the legally recognized sites of decentralized power (primarily local governments) are often understood (if not best understood) and legitimated by analogy to private associations. See *infra* pp. 1880–81.

through the creation of spaces in which concerns and lifestyles that would lose out in the arena of mass politics can be vindicated.

The following discussion examines the public law that shapes political geography. Legal political geography consists of three primary elements: first, the jurisdictional boundaries that define a government or entity; second, the power and/or rights of the entity vis-à-vis land and individuals within its boundaries; and third, the system of internal governance or administration of the government or entity. I begin by examining the mechanisms by which local boundaries can be established and altered. I then proceed to examine the Supreme Court's doctrine regarding distribution or "delegation" of power to, and within, local governments. Next, I examine the internal democracy of local governments, shaped by the residency requirement for exercise of the franchise, and devote special attention to the influence that the other two elements of political geography — boundaries and powers — have on the nature of local democracy. These first three doctrinal explorations demonstrate that law creates political geography even as legal doctrine denies its relevance through the oscillation between opaque and transparent conceptions of political space.

I then demonstrate the racially segregative effects of legal political geography, discussing the issue of racially exclusionary zoning and its implications for voting rights within the context of segregated localities. Finally, I examine the economic consequences of reified local boundaries in the context of school district financing and school desegregation.

1. Local Boundaries: Annexation, Secession, and Consolidation. — Jurisdictional boundaries are the first component of political geography. Most state laws concerning local home rule and municipal annexation and secession allow parochial enclaves to define themselves in ways that are, potentially, politically and economically opportunistic and to defend themselves against influence from neighboring communities, which become defined as "outsiders." The states have developed a wide range of incorporation, annexation, secession, and consolidation procedures. For example, most states provide for a local initiative procedure by which property owners and residents living on unincorporated land can form a local government if they can persuade a minimum number of their neighbors to agree.⁴⁴ In fact, few standards govern how new local boundaries are drawn. Even in those states that require a "community of interest" as a condition of incorporation, the courts have accepted the almost tautological assertion that a "common demand for municipal services" is itself evidence of

⁴⁴ In some states a municipality can be incorporated by as few as 75 residents. See Richard Briffault, *Our Localism: Part I — The Structure of Local Government Law*, 90 COLUM. L. REV. 1, 74 & n.314 (1990).

such a community or have found a sufficient "community of interest" even when the community seeking to be incorporated was only a small part of a larger "community."⁴⁵ And once established, local boundaries are very difficult to alter.⁴⁶ Moreover, as we shall see,⁴⁷ these jurisdictions, under the banner of local autonomy, are generally free to exclude outsiders who do not conform to the locality's self-image or who might erode its tax base.

2. *The Validation of Local Power: The City as Delegate and the City as Autonomous.* — Local government exists in a netherworld of shifting and indeterminate legal status. Although local government is officially defined as a mere delegate of state authority, at times the law treats local governments as autonomous "city-states" with rights against outsiders and against centralized authority. These conflicting conceptions of local government have important consequences for democratic citizenship. The view of the locality as delegate implies that, as between citizenship in the locality and in the larger polis of the state, only state citizenship matters. The view of the locality as autonomous implies not only that citizenship in a particular locality is an important part of democratic participation, but also that the basis for local power is as unambiguous as that for the power of the state.

Local citizenship does matter, but it is neither uncomplicated nor unambiguous. The distribution of political power to localities is a key element in the creation of political geography, as an examination of the agency, or "delegation," theory of local government and of the residency requirement for local citizenship demonstrates. In both of these examples, legal doctrine oscillates between the transparent and the opaque conceptions of political space, but each doctrinal position tends to reflect one view or the other. Thus, the doctrine of local government as delegate implies that citizenship in a locality is unimportant — an example of the transparent conception of political space. Further, the problematic nature of delegation of power *within* localities demonstrates that the delegation of power to localities cannot be the inconsequential or uncomplicated matter that the notion of local government as delegate assumes. The residency requirement, by contrast, implies that local governments are semi-autonomous, that the local boundaries that define residence are natural or inevitable, and

⁴⁵ See *id.* at 76.

⁴⁶ See *id.* at 78-79; see also JACKSON, *supra* note 9, at 152 ("[A]ffluent suburbs . . . were able to move state legislatures away from the doctrine of forcible annexation. . . . [I]t is now commonly held that annexation . . . must gain the approval of the residents of an affected area. [Moreover,] rigorous procedural and substantive requirements block the way . . ."); Briffault, *supra* note 44, at 78 n.333 ("[I]n the twentieth century no state legislature has ordered a major consolidation of local governments without also making provision for a local referendum. Because of suburban resistance, voter approval requirements are generally fatal to consolidation proposals." (citation omitted)).

⁴⁷ See *infra* pp. 1870-74.

that the internal democratic process can be validated by those geographic borders — an example of the opaque conception of political space.

(a) *Delegation, Citizenship, and the Transparency of Space.* — *Hunter v. City of Pittsburgh*⁴⁸ established that local governments are merely administrative agencies of the state that can be altered by the state legislature without constitutional consequences.⁴⁹ In *Hunter*, citizens of the Town of Allegheny, Pennsylvania, opposed the consolidation of their town with the City of Pittsburgh. Under Pennsylvania law, a simple majority of the voters in a proposed new city could accomplish consolidation even if a majority of voters in one of the smaller, preconsolidation cities — in this case Allegheny — opposed it. The plaintiffs argued that their citizenship in the municipality created an implied contract between the citizens and the Town of Allegheny that precluded consolidation with Pittsburgh.⁵⁰ The Court rejected this contention, and reasoned that cities “are political subdivisions of the state, created as convenient agencies for exercising such of the governmental powers of the state as may be entrusted to them” and therefore are subject to change by whatever process the state establishes.⁵¹

Hunter articulates the position of cities and city residents in relation to the states in the context of federal law. As far as the Federal Constitution is concerned, cities have no independent status or rights. According to the *Hunter* Court, local jurisdictional boundaries are politically insignificant and fungible. This view must assume that the shape of local political geography is not important to the fulfillment of citizenship and democratic participation; here, local political space becomes transparent.

It follows from *Hunter's* conception of local political geography that states cannot justify their failure to review local government policies on the grounds that local governments are autonomous, because local government policies, are, for constitutional purposes, state policies. For example, if the states are not free to establish a system of segregated schools, they should not be allowed to accomplish the same objective by delegating state power to segregated localities. However, as we shall see, *Hunter's* logic has not driven the constitutional analysis in the Court's desegregation decisions.⁵²

⁴⁸ 207 U.S. 161 (1907).

⁴⁹ See *id.* at 178–79.

⁵⁰ See *id.* at 166.

⁵¹ *Id.* at 178.

⁵² See *infra* p. 1875. The states themselves have generally provided in their individual constitutions for some degree of local autonomy. Local “home rule,” as it is called, historically conceived of the locality as a state within a state (*imperium in imperio*) with control over local matters. See, e.g., CAL. CONST. art. XI, § 6; see also Kenneth E. Vanlandingham, *Municipal*

(b) *Residence, Citizenship, and the Opacity of Space.* — The residency requirement for exercise of the franchise defines the nature of the local system of democratic governance — an important element of local political geography. The Supreme Court has insisted that the franchise be extended to all “bona fide residents” of a locality. At issue in *Holt Civic Club v. City of Tuscaloosa*⁵³ was the extraterritorial exercise of the city’s police power over an unincorporated community. The residents of the unincorporated community brought due process and equal protection challenges that demanded either that they be allowed to vote in municipal elections or that the exercise of Tuscaloosa’s police power over them be invalidated.⁵⁴ The *Holt* decision, reduced to its essentials, held that the community that must be enfranchised is defined by the geographic borders of the locality. The Court reasoned that just as every resident must be enfranchised, by the same principle every non-resident could be disenfranchised.⁵⁵ The *Holt* Court rejected the claim that Tuscaloosa’s extraterritorial exercise of its police power required a corresponding extension of the franchise to those non-residents affected, and reasoned that any “city’s decisions inescapably affect individuals living immediately outside its

Home Rule in the United States, 10 WM. & MARY L. REV. 269, 283–90 (1968) (detailing the origins of home rule). Modern home rule provisions, modeled after a proposal by the National League of Cities, grant to the locality all powers not specifically denied by the state legislature. See, e.g., MONT. CONST. art. XI, § 6; see also Kenneth E. Vanlandingham, *Constitutional Municipal Home Rule Since the AMA (NLC) Model*, 17 WM. & MARY L. REV. 1, 2–5 (1975) (describing the National League of Cities model).

Although these home rule provisions attempt to fix the authority of local governments, they suffer from ambiguities. For instance, the *imperium in imperio* model attempts to draw a distinction between local and state matters, a distinction that proves untenable in practice. The *imperium* model requires courts to determine whether the matter in question is a local or a state one by balancing the costs and benefits associated with each option. In effect, many state constitutional provisions for local sovereignty simply transfer the responsibility for resolving the tension inherent in decentralized power to the judicial branch. The judiciary must reinvent local democracy in every case. See Michael E. Libonati, *Reconstructing Local Government*, 19 URB. LAW. 645, 657–58 (1987) (demonstrating that courts decide what is or is not a local matter and that local-sovereignty provisions do not constrain judicial decisionmaking in this regard). The National League of Cities model, by contrast, provides no real protection for local autonomy; it simply creates a geographic sphere of influence in which local government may act unless and until the state decides to take over. Neither the *imperium in imperio* nor the National League of Cities model provides a clear principle to control, or even to guide, decisions about the scope of local autonomy.

⁵³ 439 U.S. 60 (1978).

⁵⁴ See *id.* at 63–65.

⁵⁵ See *id.* at 68–70; see also *Cipriano v. City of Houma*, 395 U.S. 701, 702 (1969) (holding that a law that limited the franchise to property taxpayers in revenue-bond-issuance elections violated the Equal Protection Clause); *Kramer v. Union Free Sch. Dist. No. 15*, 395 U.S. 621, 632–33 (1969) (holding unconstitutional a voter-qualification scheme that limited the vote in school district elections to otherwise qualified voters who either owned or leased taxable real property in the district, were married to people who owned or leased taxable property, or were parents or guardians of children enrolled in a local school district).

borders. . . . Yet no one would suggest that [such] nonresidents . . . have a constitutional right to participate in the political processes bringing it about."⁵⁶

The *Holt* Court held that, ultimately, it was not local power being exercised, but state power, delegated to Tuscaloosa "as [a] convenient agenc[y] for exercising such of the governmental powers of the State as may be entrusted to [it]."⁵⁷ The majority in *Holt* argued, on that basis, that the restriction of the franchise to Tuscaloosa residents was a routine application of the bona fide residency requirement.⁵⁸ But, as the dissent pointed out, the reason for allowing localities to restrict the franchise to residents — indeed, the principle that supports the very existence of semi-autonomous local government — is "the basic conception of a political community."⁵⁹ The notion of political community belies the conception of local government as a delegate of the state and instead conjures up the notion of a state within the state. According to the dissent, in determining that the political community of Tuscaloosa ended with the line between Tuscaloosa proper and the unincorporated area bringing the challenge, the majority "cede[d] to geography a talismanic significance."⁶⁰

But perhaps the dissenting Justices had talismans of their own. In foreclosing the possibly sweeping implications of its logic, the dissent argued for a "crystal-clear distinction between those who reside in Tuscaloosa's police jurisdiction . . . and those who reside in neither the city nor its police jurisdiction and who are thus merely affected by the indirect impact of the city's decisions."⁶¹ Both the majority and the dissent employed an opaque conception of political space. Both assumed that residence within some geographically defined area was a necessary prerequisite to exercise of the franchise, the only difference being that the majority chose the corporate boundaries and the dissent chose the police jurisdiction. On both accounts, the limited scope of local citizenship was justified as a self-validating consequence of the space in question. Neither the majority nor the dissent exam-

⁵⁶ *Holt*, 439 U.S. at 69.

⁵⁷ *Id.* at 71 (quoting *Hunter v. City of Pittsburgh*, 207 U.S. 161, 178 (1907)). The Court argued that the disgruntled non-Tuscaloosans were not subject to an exercise of power without representation because they had the opportunity to influence Tuscaloosa's government indirectly as Alabama citizens: "this Court does not sit to determine whether Alabama has chosen the soundest or most practical form of internal government possible. Authority to make those judgments resides in the state legislature, and Alabama citizens are free to urge their proposals to that body." *Id.* at 73-74.

⁵⁸ *See id.* at 68-69.

⁵⁹ *Id.* at 82 (Brennan, J., dissenting) (quoting *Dunn v. Blumstein*, 405 U.S. 330, 334 (1972)).

⁶⁰ *Id.* at 81. The dissent described the local political community as a "reciprocal relationship between the process of government and those who subject themselves to that process by *choosing* to live within the area of its authoritative application." *Id.* at 82 (emphasis added).

⁶¹ *Id.* at 87.

ined how the boundaries that they advocated were established. Rather, both assumed local boundaries to be a fact of the case rather than a subject of the dispute and a proper object of the law.⁶²

3. *Delegation and the Franchise Within the Autonomous City.* — Although the Court has presented the view that local government is a mere delegate of the state as a coherent and unproblematic theory of local power, delegation of power in fact raises a host of thorny questions. The legitimacy of power residing in one democratically governed body does not guarantee the legitimacy of that body's delegation of power to another body, especially if the delegate is a narrow sub-part of the body originally holding power. The Court has recognized this fact in the context of delegation of power *within* local governments, but has ignored it in the context of delegation *to* local governments. This recognition suggests that local power cannot be justified as a simple delegation of state power — it challenges the transparent conception of local political geography, which allows delegation to appear to be uncontroversial.

In *City of Eastlake v. Forest City Enterprises*,⁶³ shifting conceptions of political geography were invoked to legitimate the delegation of the police power. The Eastlake city charter was amended to require the approval of fifty-five percent of the electorate in a referendum before any zoning variance could take effect. After a variance to allow the construction of multi-family housing was passed by the City Planning Commission but rejected by the electorate in a referendum, the respondent challenged the referendum provision as an unconstitutional delegation of power from Eastlake's elected government to the electorate.⁶⁴ The Ohio Supreme Court sustained the challenge and held that the referendum provision "lack[ed] standards to guide the decision of the voters, [and thereby] permitted the police power

⁶² The dissent took the Tuscaloosa police jurisdiction as given, just as the majority did the corporate jurisdiction. If living within a jurisdiction's established boundaries is seen as a matter of simple choice, individuals who reside in Tuscaloosa's police jurisdiction could simply choose to move if they wished either to vote in Tuscaloosa's election or to avoid Tuscaloosa's police power. It is only if one recognizes that the decision to move involves costs and is thus not always a realistic choice that the Alabama scheme is revealed as problematic. But if moving is not a matter of pure choice, then the dissent's assumption that citizenship is a matter of choice is especially troublesome. If a community of non-residents affected by a neighboring municipal government wished to consolidate with that municipality and share both the burdens and privileges of residence, is it as free to do so as the "choice" model of residency implies? Our discussion of the laws of annexation and consolidation suggests that the answer is no. "Choice," on the dissent's model, means the freedom to move into a pre-established geographic locality (whose borders have unexplained, talismanic significance for the dissent), and not, apparently, to expand the local boundaries to encompass one's current abode.

⁶³ 426 U.S. 668 (1976).

⁶⁴ See *id.* at 670-71.

to be exercised in a standardless, hence arbitrary and capricious manner."⁶⁵

The Supreme Court overruled. To do so, it had to distinguish two prior cases that had struck down delegation provisions. One of those earlier cases, *Eubank v. City of Richmond*,⁶⁶ had struck down an "ordinance which conferred the power to establish building setback lines upon the owners of two-thirds of the property abutting any street."⁶⁷ The other, *Washington ex rel. Seattle Title Trust Co. v. Roberge*,⁶⁸ had invalidated an "ordinance which permitted the establishment of philanthropic homes for the aged in residential areas, but only upon the written consent of the owners of two thirds of the property within 400 feet of the proposed facility."⁶⁹ In distinguishing *Eubank* and *Roberge*, the Court asserted that "the delegation of legislative power, originally given by the people to a legislative body, and in turn delegated by the legislature to a *narrow segment* of the community [and] not to the people at large" is to be distinguished from "a referendum procedure such as we have in this case[;] the standardless delegation of power to a limited group of property owners condemned by the Court in *Eubank* and *Roberge* . . . is not to be equated with decisionmaking by the people through the referendum process."⁷⁰

The *Eastlake* Court accepted local boundaries as defining a discrete and autonomous "people," and saw the referendum provision, not as a delegation, but as the unmediated exercise of popular sovereignty. This reasoning appears to contradict *Hunter's* view that localities are themselves agents of the state and that local power is thus a delegation of state power. If the state is free to delegate power to localities, a narrow segment of the state-wide community, it is difficult to understand why localities cannot also delegate power to a narrow segment of the local community, especially when it is the segment that is most directly affected by proposed development.⁷¹ Stated as the reverse corollary, if the delegation of local power to spatially defined "dele-

⁶⁵ *Id.* at 672.

⁶⁶ 226 U.S. 137 (1912).

⁶⁷ *Eastlake*, 426 U.S. at 677; see *Eubank*, 226 U.S. at 144.

⁶⁸ 278 U.S. 116 (1928).

⁶⁹ *Eastlake*, 426 U.S. at 677; see *Roberge*, 278 U.S. at 122-23.

⁷⁰ *Eastlake*, 426 U.S. at 677-78.

⁷¹ As Professor Michelman points out:

Since no one need be concerned about the existence or location of a setback line or rest home except the owners and residents in the immediate vicinity, the decentralization schemes have the seemingly desirable effect of maximizing the direct influence in each such decision of the individuals directly affected by it.

Frank I. Michelman, *Political Markets and Community Self-Determination: Competing Judicial Models of Local Government Legitimacy*, 53 IND. L.J. 145, 167 (1977-1978).

gates" is unconstitutionally arbitrary and capricious in the absence of standards to guide the delegate, why is the standardless delegation of state power to localities, here achieved through the medium of the referendum process, not also unconstitutional?⁷²

The willingness of the *Eastlake* Court to accept the delegation of power through referendum, and indeed of courts generally to accept the idea that *all* local power is delegated from the state, reflects the oscillation between a transparent and an opaque conception of political space. Delegation can be regarded as politically inconsequential because of a transparent conception of political space; local governments are seen as *parts* of the state rather than as separate entities with autonomous concerns. But this view contradicts the *Eastlake* Court's view (and the view that underlies judicial deference to local democracy in general) that local governments represent the people "at large" — a view that must assume that local jurisdictional boundaries define a democratic polis that is self-validating or validated by geography itself, and that thereby reifies local political space as opaque.

4. *Exclusionary Zoning and Local Democracy: The Racial Politics of Community Self-Definition.* — Along with historical de jure segregation, racially exclusionary zoning introduces the racial element into local political geography and thereby creates a structure of racially identified space. Further, the now-familiar oscillation between opaque and transparent conceptions of political space informs the doctrine surrounding exclusionary zoning cases: the zoning power is justified by reference to an internal local political process; hence the polis that votes on local zoning policy is defined and legitimated by an opaque local geography. At the same time, the effect of this political exclusion for the excluded racial group is considered insignificant: the very local geography in question in the challenged zoning policy is rendered transparent.

"Exclusionary zoning" is a generic term for zoning restrictions that effectively exclude a particular class of persons from a locality by restricting the land uses those persons are likely to require. Today, exclusionary zoning takes the form both of restrictions on multi-family housing and of minimum acreage requirements for the construction of single-family homes ("large-lot" zoning). Exclusionary zoning is a mechanism of the social construction of space. Local space is defined as suburban, family-oriented, pastoral, or even equestrian by zoning

⁷² It does not necessarily follow that the outcomes either of *Eastlake* or of *Eubank* and *Roberge* are in error. There may be reasons for preferring local boundaries to sub-local boundaries, or for preferring fixed boundaries to boundaries that shift with particular controversial land uses. But the Court did not give any such reasons to justify its different treatment of localities and neighborhoods. *Eastlake* was decided as if local autonomy were natural and pre-legal, and *Eubank* and *Roberge* were decided on the basis that sub-localities are illegitimate because they represent only a narrow group of the people in whom power was originally vested.

ordinances. The ordinances are justified in terms of the types of political spaces they seek to create: a community that wishes to define itself as equestrian may enact an ordinance forbidding the construction of a home on any lot too small to accommodate stables and trotting grounds, or may even ban automobiles from the jurisdiction. The desire to maintain an equestrian community is then offered as the justification for the ordinance. Courts have generally deferred to the internal political processes of the locality and upheld such exclusionary ordinances.

Such a construction of space has a broader political impact than the immediate consequence of the ordinance. By excluding non-equestrians from the community, a locality constructs a political space in which it is unlikely that an electoral challenge to the equestrian ordinance will ever succeed.⁷³ The "democratic process" that produces and legitimates exclusionary zoning is thus very questionable: in many cases, the only significant vote that will be taken on the exclusionary ordinance is the first vote. After it is enacted, exclusionary zoning has a self-perpetuating quality.⁷⁴

(a) *Community Character*. — The zoning power is most frequently justified by the principle that a community should be able to determine its character through exercise of the police power and thereby avoid the vicissitudes of the marketplace. In the seminal zoning case, *Village of Euclid v. Ambler Realty Co.*,⁷⁵ the Supreme Court upheld a zoning ordinance that restricted multi-family housing and industrial and commercial uses of land.⁷⁶ The *Euclid* Court found that the zoning power was properly employed to maintain a particular community character, which would be destroyed by the construction of apartment houses or the entry of industrial enterprises.⁷⁷

Inherent in *Euclid's* holding is the idea that the local democratic process legitimates the exercise of the police power. Thus, the Su-

⁷³ Moreover, because most state constitutions provide for local home rule, there is frequently no basis upon which to challenge such an ordinance in state courts. See *supra* note 52.

⁷⁴ This is merely one example of the tautology of community self-definition. See *supra* p. 1860. One must decide who is a member of the community before one can inquire as to the community's opinion of itself, whether that inquiry takes the form of a judicial determination, an election, or a referendum.

⁷⁵ 272 U.S. 365 (1926).

⁷⁶ See *id.* at 379-84, 396-97.

⁷⁷ See *id.* at 394-95. In the lower court decision, overruled by the Supreme Court, the district court articulated the competing concern that the zoning power was employed, not simply to preserve neighborhood character, but to create class-identified local spaces:

[The purpose of the ordinance] is to *classify the population and segregate them according to their income or situation in life*. The true reason why some persons live in a mansion and others in a shack, why some live in a single-family dwelling and others in a double-family dwelling, . . . or why some live in a well-kept apartment and others in a tenement, is primarily economic.

Ambler Realty Co. v. Village of Euclid, 297 F. 307, 316 (N.D. Ohio 1924) (emphasis added).

preme Court noted: "the Village . . . is politically a separate municipality . . . Its governing authorities, presumably represent[] a majority of its inhabitants and voic[e] their will."⁷⁸ In contrast, the appellee, Ambler Realty, asserted that "[t]he municipal limits of the Village of Euclid . . . are, after all, arbitrary and accidental political lines."⁷⁹ The appellee thus raised the arbitrary and constructed nature of local boundaries to counter the notion that the locality's internal political processes were the ultimate authority.

In upholding the ordinance, the Supreme Court took the Village of Euclid's local boundaries as given, and thereby tacitly resolved the tension between local control of community character, which institutionalized the present form and shape of the local association, and the possibility of a broader public good,⁸⁰ which would challenge on inclusionary principles the local association's right to control the construction of multi-family housing, in favor of the former. But despite the foundation of the zoning authority in the police power, the *Euclid* Court provided an essentially private, rights-based rationale for public zoning, by analogizing Euclid's zoning decision to the right of private citizens to enjoin a public nuisance under tort law,⁸¹ "so that the city legislation could be seen as simply recognizing a true right of the residential owners already implicit in the ancient common law doctrine of nuisance."⁸² Hence, the local-control rationale in *Euclid* arguably had more to do with providing a proxy for private control than with promoting the autonomy of cities. This tension between the conception of cities as political communities and the competing conception of cities as efficient mechanisms for the expression of private rights frequently guides (and confuses) judicial decisionmaking with respect to local government.

(b) *Community Redefinition*. — Boundaries play a vital role in delimiting the range of claims outsiders can make in challenging local restrictive ordinances. Together, the reification of local boundaries and the residency requirement obscure the interest outsiders have, not only in entering a particular locality, but also in changing its nature by example and through the political process. The recognition of this latter interest is important because without it one could respond to

⁷⁸ *Euclid*, 272 U.S. at 389.

⁷⁹ *Id.* at 374.

⁸⁰ The appellee argued that if Euclid could restrict industrial development, so could any other locality. All or most of the land in the area could be reserved to the derogation of progress and efficiency, "needed . . . by that larger public good and public welfare, which takes into consideration the extent to which the prosperity of the country depends upon . . . economic development." *Id.* This argument applies with equal force to an ordinance that completely prohibits housing in its jurisdiction.

⁸¹ See *id.* at 387-88 ("[T]he law of nuisances . . . may be consulted . . . for the helpful aid of its analogies in the process of ascertaining the scope of, the [police] power.").

⁸² Michelman, *supra* note 71, at 179-80.

claims of inclusion in the following manner: because exclusionary measures are not explicitly based on immutable characteristics, outsiders who wish to enter a locality need only conform to the restrictions. If they cannot so conform because of lack of resources, they are victims of economic forces and not of the restricting locality's ordinance; if they refuse to conform, then they should simply live elsewhere.

This interest of outsiders in changing a locality by their *presence* is implicated in *Village of Belle Terre v. Boraas*.⁸³ In *Belle Terre*, a small village enacted an ordinance excluding households composed of three or more persons unrelated by blood or marriage.⁸⁴ A group of six students who had leased a house in Belle Terre challenged the ordinance on a number of grounds. In upholding the ordinance, the Supreme Court specifically held that the ordinance did not impinge on the students' right to association.⁸⁵ The Court's conclusion here is puzzling: the students in *Belle Terre* asserted a right to live together in private association, a right that the ordinance certainly curtailed. It is no response to say that the students may live together elsewhere, because "any such argument would devalue the most political aspect of the students' claim — that they might wish not just to live in a certain way but to live that way in a place that they hope to change by their example."⁸⁶ Despite the Court's refusal to recognize an associational right, one was implicated: "We must therefore regard the village as having asserted a general power to dictate the intimate composition of domestic associations."⁸⁷ In excluding non-familial households, Belle Terre sought to preserve its character as a community of traditional families — an interest that is very close to an associational right itself. Viewed in this manner, *Belle Terre* involves a conflict between the individual associational rights of the students to be included in the village and the associational rights of the villagers themselves to exclude the students.⁸⁸

When local policies are challenged as *racially* discriminatory, local boundaries may do the discriminatory work. Because these boundaries are left unexamined, it is impossible for plaintiffs to demonstrate

⁸³ 416 U.S. 1 (1974).

⁸⁴ See *id.* at 2.

⁸⁵ See *id.* at 7.

⁸⁶ LAURENCE H. TRIBE, *AMERICAN CONSTITUTIONAL LAW* § 15-17, at 1403 (2d ed. 1988). Professor Tribe also points out that the claim that the students could have lived elsewhere was conjectural, "as the town had not discharged its burden of showing that the impact [on the students's associational rights] was in fact trivial"; the issue never arose because the Court determined that associational rights were not involved. *Id.*

⁸⁷ *Id.* § 15-17, at 1404.

⁸⁸ See *id.*; cf. *id.* § 15-17, at 1408 ("[S]uppose the village of Belle Terre makes no such claim of association and protection. . . . We are still left with a political subdivision claiming that it perceives harm in the influx of nontraditional groups.").

discriminatory intent: the discrimination appears to be either the result of aggregated-but-unconnected individual choices or merely a function of economic inequality, and therefore beyond the power of the courts to remedy. In *Village of Arlington Heights v. Metropolitan Housing Development Corp.*,⁸⁹ the Supreme Court upheld a village's prohibition of multi-family housing despite demonstrable racially restrictive effects.⁹⁰ The Court accepted the locality's professed neutral motivation of a commitment to single-family housing and rejected the contention that this commitment could be inextricably bound up with racial and class prejudices.⁹¹

Most importantly for our purposes, the Court tacitly accepted the zoning policy as the legitimate product of the local democratic process. The Court relied on the same conception of space that held sway in *Euclid*, and accepted local boundaries as the demarcation of an autonomous political unit. But the *boundaries*, combined with the zoning policy, exclude "outsiders" from the political processes of the locality.⁹² Because it may be the homogeneity of the local political process that is responsible for the racially exclusionary policy, the Court's deference to the locality's internal political process is unjustified: it is this very political process (as well as the boundaries that shape that process) that is at issue.⁹³

Indeed, racial minorities with significant cultural particularities present an especially strong claim for political inclusion in a jurisdiction: if racial minorities are to enjoy equality in an otherwise racially homogeneous jurisdiction, they must have the opportunity to change the character of the political community, and not merely the right to enter on condition of conformity. Furthermore, even if minorities were willing to conform to a homogeneous community's norms, when exclusionary zoning takes on an economic character, the option may simply be unavailable. And, according to our economic model,⁹⁴ the impoverished condition of segregated minorities is, at least in part, a function of their very exclusion from the communities that control wealth and employment opportunities.

5. *The Distributive Consequences of Spatial Education*: Milliken and Rodriguez. — Racially identified spaces, demarcated by local

⁸⁹ 429 U.S. 252 (1977).

⁹⁰ See *id.* at 268-71.

⁹¹ See *id.*

⁹² See *TRIBE*, *supra* note 86, §§ 13-11 to -13, at 1086-91.

⁹³ It is true that the plaintiffs did not raise the issue of voting rights in *Arlington Heights*. Of course, their failure to do so is no objection to the thesis that a misconception of political space obscured the tension between local autonomy and centralized power. Indeed, it is further proof: the plaintiffs neglected a potentially powerful argument against the zoning restriction because they did not imagine challenging the boundaries that separated them from the political process of Arlington Heights.

⁹⁴ See *supra* pp. 1849-57.

boundaries, have distributive as well as political consequences. Our economic model demonstrates that,⁹⁵ because localities administer many taxing and spending functions, boundaries that segregate on the basis of wealth or race ensure that taxes are higher and quality of services lower in some jurisdictions than in others. And because local boundaries are regarded as sacrosanct in the implementation of desegregation remedies, if inter-local rather than intra-local segregation is more prevalent, the remedies will be of little consequence.

In *Milliken v. Bradley*,⁹⁶ the Supreme Court held that court-ordered school busing designed to remedy de jure racial segregation in the Detroit schools could not include predominantly white *suburban* school districts.⁹⁷ The Court found that, because no evidence existed that the suburban districts that would be included under the court-ordered plan had themselves engaged in de jure discrimination, they could not be forced to participate in the busing remedy.⁹⁸ This rationale is puzzling unless one views cities not as mere agents of state power, but as autonomous entities. If cities were mere agents of state power, the state as a whole would be ultimately responsible for their discriminatory actions. The state as a whole would therefore bear responsibility for remedying the discriminatory practices: an apportionment of blame and responsibility within the state would be arbitrary and any such apportionment that hindered effective desegregation would be unacceptable.⁹⁹

One may object that, because Michigan had allocated power and authority to cities, the Court correctly allocated blame and responsibility in the same manner. But the Court failed to examine the motivation for the position of local jurisdictional boundaries. Moreover, by conceiving of local political space as opaque — as defining a singular entity — the Court failed to consider the fact that Detroit's racial composition had changed and that responsibility for historical

⁹⁵ See *supra* pp. 1849-57.

⁹⁶ 418 U.S. 717 (1974).

⁹⁷ See *id.* at 741-47.

⁹⁸ See *id.* at 745.

⁹⁹ We must not forget that, as a federal constitutional matter, local boundaries should not matter at all: for constitutional purposes the policies at issue in both *Milliken* and *Rodriguez* were state policies, and the discrimination to be addressed was discrimination on a state-wide level.

[I]f local units such as municipalities and school districts are mere subdivisions of the states, how can their inviolable core of local sovereignty function to limit federal courts' ability to enforce fourteenth amendment mandates on the states? . . . [T]he quasi-constitutional principle of local sovereignty serves to divert attention from the fact that established federalism principles are not available to justify constrictions on the ability of plaintiffs to recover under the fourteenth amendment.

Joan C. Williams, *The Constitutional Vulnerability of American Local Government: The Politics of City Status in American Law*, 1986 WIS. L. REV. 83, 110.

segregation could no more be confined within Detroit's city limits than could its white former residents.

By accepting the municipal boundaries as given, the *Milliken* Court ironically segregated the scope of the remedy to racial segregation, and thereby may have allowed the historical segregation to become entrenched rather than remedied. "The plaintiffs were to be trapped within the city's boundaries, without even an opportunity to demand that those boundary lines be justified as either rational or innocently nonrational."¹⁰⁰

A similar pattern and misconception of space prevailed in *San Antonio Independent School District v. Rodriguez*,¹⁰¹ in which the Court held that a school-financing system that was based on local property taxes and produced large disparities in tax-burden/expenditure ratios among districts did not violate the Equal Protection Clause.¹⁰² The Court reasoned that a commitment to local control obliged it to uphold the Texas school-financing scheme.¹⁰³ The Court also rejected the argument that the Texas system of local funding was unconstitutionally arbitrary and asserted that "any scheme of local taxation — indeed the very existence of identifiable local governmental units — requires the establishment of jurisdictional boundaries that are inevitably arbitrary."¹⁰⁴ The Court's argument here is essentially circular. The appellees began by *challenging* as arbitrary the use of local boundaries as a means of determining the distribution of educational funds. The Court's response asserted that arbitrariness is inevitable *if* local boundaries are to be respected.¹⁰⁵ But this is precisely what was at issue: are local boundaries to be used to determine school finance levels or not?

The Court's circular reasoning reflects another level of incongruence in its logic. While the Court based its refusal to overturn the

¹⁰⁰ *TRIBE*, *supra* note 86, § 16-19, at 1495.

¹⁰¹ 411 U.S. 1 (1973). *Rodriguez* does not explicitly involve race, although racial overtones shade its discussion of school districts with vastly disparate tax bases. The *Rodriguez* appellees would have been hard pressed to state a race-based claim without evidence of intentional discrimination. Even if the plaintiff could have shown an overrepresentation of Mexican-Americans in poorer districts, such a showing could be easily dismissed as coincidental unless one were to examine the interaction of race and the structure of political geography in a comprehensive way. Because this Article does that, *Rodriguez* provides a useful supplement to *Milliken* by demonstrating the distributive consequences of local boundaries: segregated localities with unequal tax bases promote a racially disparate distribution of public funds.

¹⁰² *See id.* at 44-55.

¹⁰³ *See id.* at 47-53.

¹⁰⁴ *Id.* at 53-54.

¹⁰⁵ *See id.* at 53-55. No distinction between "local autonomy" and "local boundaries" will rescue the Court's argument from its circularity. The Court itself recognized that the appellees did not challenge local autonomy, but rather challenged the use of local boundaries as a means of raising and distributing educational funds. *See id.* at 50. Because the financing scheme was carried out by the *state* government, inequality, and not "autonomy," would be lost by requiring uniform expenditures.

Texas system on respect for local autonomy and local boundaries, at the same time it justified the arbitrariness of Texas's local boundaries on the grounds that local boundaries are irrelevant.¹⁰⁶ If respect for local government were as important as the Court claimed, it would seem strange that the Court should so casually dismiss the fact that the boundaries that define these governments are arbitrary. But, if arbitrariness is inevitable, it seems illogical to accord arbitrarily defined subdivisions such respect.

The Court's decision rests on two conflicting conceptions of local government and the political space it occupies. On the one hand, the Court conceived of local space as transparent and thus viewed localities as mere subdivisions, the inconsequential and administratively necessary agents of centralized power. On the other hand, it conceived of local space as opaque and thus viewed localities as deserving of respect as autonomous political entities.¹⁰⁷

6. *Conclusion: Autonomy and Association.* — My thesis in this section has been that political space does the work of maintaining racially identified spaces, while reified political boundaries obscure the role of political space and represent it either as the delegation of state power and therefore inconsequential, or as natural and therefore inevitable. Doctrine insists that local governments are merely the geographically defined agents of centralized government. Although such delegation is viewed with great suspicion when the delegate is not geographically defined, courts have shown extreme deference to local political processes. For example, local boundaries become a talisman for purposes of voting rights, even when those denied the right to vote are directly affected by the policies of the jurisdiction. Local boundaries are regarded as sacrosanct even when doing so prevents an equitable distribution of public resources for *state* purposes or interferes with the constitutionally mandated desegregation of *state* schools. Thus, the decisions of the Court in the foregoing cases rest on a shifting foundation of local sovereignty and local irrelevance.

One caveat is in order. My discussion has posed the issue as one that involves localities excluding outsiders with possible rights to in-

¹⁰⁶ The Court reasoned that no identifiable class of persons was harmed by the Texas system because the system's inequities tracked geographic lines and not the individual characteristics of "indigence" or relative poverty. *See id.* at 22-25. In rejecting the argument that the geographically defined inequality of the Texas system constituted an Equal Protection Clause violation, the Court complained that the *Rodriguez* class was "*unified only by the common factor of residence in districts that happen to have less taxable wealth than other districts . . .* [T]he class is not . . . relegated to such a position of political powerlessness as to command extraordinary protection from the majoritarian political process." *Id.* at 28 (emphasis added) (footnote omitted).

¹⁰⁷ As Justice Marshall argued in dissent, "[t]he only justification offered by appellants to sustain the discrimination in educational opportunity caused by the Texas financing scheme is local educational control." *Id.* at 126 (Marshall, J., dissenting).

clusion. But we must remember that local government law reflects a *conflict* between demotic inclusiveness and the exclusiveness that makes community possible. Indeed, because our focus is on racial minority groups, the related tension between integration and separatism warrants consideration. We must not forget that in order to reject segregation, we need not unreservedly accept integration. Indeed, especially for racial minorities, some degree of separatism may represent the best or only avenue to empowerment and fulfillment. In the cases I have examined, the reification of political space ensured that the conflict between integration and separatism, inclusion and exclusion, was never even addressed. There may, however, in some cases be good reasons to grant a locality the power to exclude. What are we to make, for example, of cases like *Belle Terre*, in which one set of associational rights clashes with another, or associational rights clash with rights to political participation?

I have no formula for resolving these issues, but I do submit that we must recognize these conflicts for what they are. If we do so, we may find that often the true conflict is falsely framed in terms of a generic "local sovereignty." As Professor Laurence Tribe notes, the justification of *associational* autonomy is often unpersuasive¹⁰⁸ — many localities are merely spaces where atomistic individuals sleep and occasionally eat. Hence our desire for local autonomy is often less an impulse to preserve something that is already there than it is a desire to realize an ideal. In realizing this ideal we must attend to issues of racial segregation and discrimination — in short, to issues of racially identified space — not only because constitutional principles so guide us, but also because the ideal is debased if we do not.

B. Spatial Conceptions in the Public and Private City

In this section, I examine the historical development of and the theoretical justifications for the opposition between public and private in the context of decentralized geographic authorities. Just as the reification of political space obscures the tensions inherent in local government doctrine and masks the racially segregative effects of public policy and judicial decisions, so too does it obscure the political nature of private associations, which have a great potential to promote

¹⁰⁸ See TRIBE, *supra* note 86, § 15-17, at 1406, 1407 n.41. This is not to say that localities do, in fact, have associational rights as a general rule, or that any of the localities in *Euclid*, *Arlington Heights*, *Holt*, or *Rodriguez* did. But because the Court framed the issues in those cases in terms of local empowerment, the question of associational rights never arose and was never adjudicated. Because local empowerment is not a constitutional principle, an associational justification may be the best rationale for the decisions. Nonetheless, as Professor Tribe points out, "one must be wary of the almost desperate desire to perceive institutions, places, and groups as 'communities' whether or not they can realistically be so described." *Id.* § 15-17, at 1407 n.41.

segregation. On the one hand, private or contractually created entities that exercise government-like powers are regarded as mere collections of individual citizens — a view that accords with a transparent conception of the geography such entities control. On the other hand, these entities are treated as unified actors — a view that accords with an opaque conception of the political geography that defines them. As a corollary, the privatization of traditionally public functions can be understood as an extreme version of the type of spatial reification we unearthed in local government doctrine. As we shall see, public and private associations involve the same conflicts between inclusion and exclusion, and between centralized authority and decentralized autonomy. The reification of boundaries in private associations has effects of racial segregation and economic stratification similar to those we uncovered in the public law context.

1. *A Brief History of Local Government.* — American local government law is in part the product of an attempt to mediate the tension between the need for decentralized associations to protect against the potential tyranny of the state, and the threat such associations pose to individual autonomy.¹⁰⁹

Localities were not the only associations that mediated between the state and the individual. Local government was once understood as a type of corporation, like a business corporation. Both local governments and business corporations were legally recognized associations governed by the same legal rules.¹¹⁰ Both performed certain functions for their members and exercised some control over those members. In short, cities *and* corporations acted as autonomous associations and as such, both posed a threat to individual autonomy and both helped to protect individuals from the potentially crushing power of the state.¹¹¹

¹⁰⁹ See ALEXIS DE TOCQUEVILLE, *DEMOCRACY IN AMERICA* 62–63 (George Lawrence trans., Anchor Books ed. 1969) (“[T]he strength of a free people resides in the local community.”); *id.* at 262–63 (asserting that a local community allows people to withstand the “tyranny of the majority”); *id.* at 278 n.1 (stating that, nonetheless, a national force should be prepared to suppress the parochial excesses of local communities); THE FEDERALIST No. 10, at 81–83 (James Madison) (Clinton Rossiter ed., 1961) (arguing that “a society consisting of a small number of citizens, who assemble and administer the government in person, can admit of no cure for the mischiefs of faction,” whereas “[b]y enlarging too much the number of electors, you render the representative too little acquainted with all their local circumstances and lesser interests”); Frug, *supra* note 41, at 1105–06 (“The proper relationship of city to state was . . . a hotly contested political issue. Some argued that the sovereignty of the people required control at the local level, but others feared the power of democratic cities over the allocation of property in America.”) (citation omitted).

¹¹⁰ See Frug, *supra* note 41, at 1090–99.

¹¹¹ See *id.* at 1098 (“[T]he corporation was the dominant way of asserting group authority and protecting group rights. The towns were ‘bodies politic,’ and all bodies politic — English cities, colonial towns, churches, the states themselves — seemed to be corporations.”).

The development of a public/private dichotomy in American jurisprudence submerged the paradox that business and municipal corporations presented for individualist liberal democracy. As private legal entities, business corporations were believed simply to reflect the aggregation of individual interests, and not to form autonomous entities in their own right.¹¹² Municipal corporations, on the other hand, became "public" and were defanged through the doctrine that localities are merely the administrative arms of state government without independent rights or powers.¹¹³

The distinction between public cities and private corporations rests on the perception that the two entities have different origins, one in the state and the other in the will of individuals. But this distinction is a fiction: one could argue that municipalities are also created by individuals, and they are also collections of private property. Indeed, municipalities, like corporations, are also arguably voluntary associations: Citizens are free to buy and sell property in cities as the market permits — free to reside in one city or another or in no city at all.

2. *Local Rights and Private Powers.* — We have seen that the doctrine of local autonomy often gains its persuasive force by tacit analogy to the private citizen or property-holder: local governments are ceded autonomy over local matters when the opaque conception of local political space leads the courts to understand the controversy

¹¹² Of course, corporations do form autonomous entities. The myth that a corporation is merely an aggregation of individual shareholders is not even taken seriously in the modern corporation, where management, once elected and empowered by shareholders, takes on an autonomous role, even acting against the will of shareholders under the aegis of the corporate interest. *See, e.g.,* Federal Election Comm'n v. National Right to Work Comm., 459 U.S. 197, 208 (1982) (upholding a law that banned a corporation's political action committee from soliciting donations from non-members for use in federal elections because, among other reasons, the law "protect[s] individuals who have paid money in to a corporation or union for purposes other than support of candidates to whom they may be opposed"). *But see* First Nat'l Bank v. Bellotti, 435 U.S. 765, 792–95 (1978) (striking down a law banning corporate donations to political campaigns and rejecting as overinclusive the state's argument that the law protected shareholders who may disagree with management's political views).

¹¹³ The case of *Trustees of Dartmouth College v. Woodward*, 17 U.S. (4 Wheat.) 518 (1819), established the distinction between cities and business corporations by holding that a corporate charter was a contract between the state and a private corporation that could not be unilaterally altered. *See id.* at 650. The case also held that no contractual protection existed for the charters of cities, which were instead alterable at the will of the state. *See id.* at 629–30. Thus, *Dartmouth College* established the official status of local government as a mere agent of the state. Professor Gerald Frug was the first to focus in depth on the implications of *Dartmouth College* for public corporations. He wrote:

The scope of property rights thus divided private from public corporations, private corporations being those founded by individual contributions of property, and public corporations being those founded by the government without such individual contributions. . . . Only if the corporation were completely a state creation . . . would there be a diminished need to protect property rights from state domination.

Frug, *supra* note 41, at 1102–03.

in question to be analogous to the property or associational rights of individuals, or when the transparent conception of local political space leads the courts to understand the controversy as implicating an aggregation of individual, private interests.¹¹⁴ When the conception of local government is tied to private rights, and as private corporations with the legal status of individuals create private governments, the space, both physical and conceptual, left for democracy is increasingly limited to the centralized bureaucracies of state and federal government. Meanwhile, privately owned space also becomes centralized as it responds to economies of scale. Private property is no less threatening to individual autonomy than is government when large concentrations of property are organized into collections that regulate behavior and use in a way that mimics government. In fact, because such "private governments" need not conform to democratic norms, they are often the greater threat to liberty.¹¹⁵

(a) *Invisible Cities: Transparent Space in the Privatized Metropolis.* — Modern economic theory often treats cities not as governments, but as commodities, which are chosen in a municipal marketplace according to their unique combination of tax burdens (price) and services (product). The decision to become a resident of a city is analogized to the decision to purchase a product or to invest in a corporation.

In a model of local government first presented by economist Charles Tiebout, citizens vote with their feet, and abandon cities whose taxes are too high or services too meager.¹¹⁶ City government

¹¹⁴ For an elucidation of this view, see Gerald E. Frug, *Property and Power: Hartog on the Legal History of New York City*, 1984 AM. B. FOUND. RES. J. 673, 681–82 (book review).

¹¹⁵ The legal realists made the claim roughly 60 years ago that owners of private property actually exercise coercive power. See, e.g., Morris Cohen, *Property and Sovereignty*, 13 CORNELL L.Q. 8, 12 (1927) (arguing that property is a form of power similar to that of a sovereign over its subjects); Louis L. Jaffe, *Law Making by Private Groups*, 51 HARV. L. REV. 201, 217 (1937) ("[P]roperty . . . equips the possessor with great powers . . . regulating others' conduct, either as it prescribes complete exclusion or participation terms.").

¹¹⁶ See Charles M. Tiebout, *A Pure Theory of Local Government Expenditures*, 64 J. POL. ECON. 416, 418–20, 422 (1956). Tiebout's view of local government recalls, in its blurring of the public/private distinction, the early twentieth-century company town, which was entirely owned by a business corporation and operated according to the rules of contract. See *Marsh v. Alabama*, 326 U.S. 501, 502, 505 (1946) (holding that constitutional guarantees of freedom of expression may not be restricted in a company-owned town that is freely accessible to the public); cf. Jaffe, *supra* note 115, at 202 (arguing that groups are given the power of government via private contract and noting that the demand for the "aid of government" is in part a demand for group privileges over and against the rest of society and in part a demand by the more aggressive members of a group that the group as a corporate body be given power to coerce under the sanction of law dissentient members of the group).

Tiebout's city is the photo negative of the "company town" — in the former, a public entity is governed according to the laws of the private market, and in the latter a private entity exercises the coercive power of government. While the "private government" that Jaffe criticizes is modeled on the "company town," Tiebout's private government is modeled on the corporation

is seen as corporate management¹¹⁷ rather than as democratic sovereign: it responds to consumer preferences by adjusting its tax/service package to attract new residents and businesses.¹¹⁸

The power of city government is justified, not by its responsiveness to democratic control or "voice," but by a contractarian notion of free choice or "exit": residents are assumed to have agreed to the particular benefits and burdens of city citizenship by their presence. Tiebout's model assumes that neither physical distance nor political geography will constrain individual decisions regarding residence.¹¹⁹ Space plays no significant role in Tiebout's formulation; it has become transparent. Reduced to the friction of distance, space is for Tiebout the organizing medium of a variety of tax/service packages.¹²⁰

itself. Taxpaying citizens become shareholders who elect the city's management and are free to leave if the management fails to perform. See Tiebout, *supra*, at 418-19.

The company town has many historical and modern-day cousins: the "company store" of the antebellum South's sharecropper system, to which many formally free blacks were perpetually in debt, and more recently the company-owned municipality, typified by southern California's "phantom" city of Vernon, entirely devoted to manufacturing interests whose corporate management and shareholders constituted a majority of the city's residents and therefore could set municipal policy to maximize corporate profit. At one time almost 50,000 people worked in Vernon, though less than 100 lived there. See MIKE DAVIS, *CITY OF QUARTZ* 165 (1990); SOJA, *supra* note 35, at 201.

¹¹⁷ The view of city government as corporate management rather than civic democracy is not merely theoretical. The municipal codes and cultures of many cities in the western United States are reflections of the idea that city government should be "rationalized" as the efficient administration of public services. Los Angeles is an example of this "reform" model of municipal government. See, e.g., RAPHAEL SONNENSHEIM, *POLITICS IN BLACK AND WHITE: RACE AND POWER IN LOS ANGELES* (1993). The insulation of Los Angeles Chief of Police Darryl Gates from citizen review or public dismissal was one of many consequences of this form of municipal organization.

¹¹⁸ But see Tiebout, *supra* note 116, at 118 n.11 (explaining that "in the extreme model that follows the [revenue and expenditure patterns of various local governments] are assumed to be absolutely fixed").

¹¹⁹ Although Tiebout recognizes that mobility may be constrained, his model assumes that constraints on mobility are so minor that citizens can move freely from city to city and express their preferences for municipal tax/service packages. See *id.* at 419-20. If the friction of distance and other constraints are significant they will seriously complicate Tiebout's model by introducing an element of constraint on individual choices.

¹²⁰ Tiebout's notion of local space as merely the medium of organization for tax/service commodities ignores the age-old common law conception of real property as unique. For example, contracts for the sale of real property are specifically enforceable while most others are subject only to restitution or reliance damages upon breach. See RESTATEMENT (SECOND) OF CONTRACTS § 357 (1979). For a modern and philosophical justification for the position that real property is not fungible, see Radin, cited above in note 42, at 987. Radin argues for a continuum from fungible to personal property and asserts that "[t]here is . . . a positive sense that people are bound up with their homes." *Id.* People are simply not indifferent about the spatial location of their residence; numerous locationally unique features, such as proximity to family, friends, employment and community institutions, topographical features, and architectural qualities of specific buildings, add profound costs to relocating and result in complications for Tiebout's model.

Just as the principles of constitutional democracy (the social contract) determine the legitimacy of law enacted by public local government, so the principles of private contract determine the legitimacy of law enacted by the private government. The terms of the "private social contract" are not subject to scrutiny in the public domain. Constitutional rights extend only to the freedom to enter into a private contract or to refuse to do so,¹²¹ and the function of democratic voice is thought to be served by the private right of exit.

(b) *Homeowners Associations and the Metaphysics of Consent.* — While Tiebout's model of local government may seem controversial, if a similar justification is offered for private entities that exercise governmental functions it is often regarded as almost self-evident, as a natural outgrowth of a commitment to private property and to freedom of contract. Foremost among such private entities is the homeowners association. Its name is misleading: homeowners associations are often not associations in the sense of an expression of "organic life as a center of communal perceptions and common activities,"¹²² nor, in many cases, are they controlled by homeowners. "The inhabitants, drawn from many different backgrounds, often have little in common, and the developer possesses nearly absolute control over the community."¹²³

Nonetheless, such organizations may one day overshadow cities in significance.¹²⁴ The proliferation of private governments raises the very tripartite tension between democratic inclusion, individual autonomy, and associational rights that we have examined with respect to local government.¹²⁵ Private governments also contribute to the structure of racialized space and follow the same pattern we have seen in the context of municipalities. As the functions of government are privatized,¹²⁶ the possibility of collective action in the service of

¹²¹ One is not always free to contract or to refrain from contracting. Propertyless laborers have to work (contract) in order to obtain the necessities of life and thus have no leverage to negotiate favorable conditions of employment and cannot refuse to contract. Likewise, racially restrictive covenants have historically prevented blacks from purchasing property in much of the United States. See Ira Nerken, *A New Deal for the Protection of Fourteenth Amendment Rights: Challenging the Doctrinal Bases of the Civil Rights Cases and State Action Theory*, 12 HARV. C.R.-C.L. L. REV. 297, 356 (1977); see also Robert Hale, *Bargaining, Duress & Economic Liberty*, 43 COLUM. L. REV. 603 (1943) (noting that, because the existing regime of property and contract law restricts liberty to consume, employers have coercive power to induce those who are not self-sufficient to work for extremely low wages).

¹²² TRIBE, *supra* note 86, § 15-17, at 1406.

¹²³ Uriel Reichman, *Residential Private Governments: An Introductory Survey*, 43 U. CHI. L. REV. 253, 286 (1976).

¹²⁴ See Joel Garreau, *The Shadow Governments*, WASH. POST, June 14, 1987, at A1, A14.

¹²⁵ See *supra* pp. 1861-62.

¹²⁶ In Los Angeles, over 150 communities currently have, or have petitioned the city council for, the right to close off public streets with gates in order to allow residents of the gated communities to control access by the general public. See Susan Noffet, *Both Sides of the Fence*;

such goals as racial and economic equality wanes. As we have seen, publicly created segregation is often justified by analogy to private rights of association. The mirror image of this process takes place when a private entity exercises traditionally public functions.

Professor Robert Ellickson describes the homeowners association as the obvious "private alternative to the city," and asserts that, although in all other relevant respects cities and homeowners associations are identical, the "perfectly voluntary nature of membership in a homeowners association" justifies the public/private split that distinguishes homeowners associations from cities.¹²⁷

Based on his public/private distinction, Professor Ellickson argues that homeowners associations should not be subject to the constitutional scrutiny that attaches to public bodies engaging in "state action," because such scrutiny ignores the contractarian underpinnings of the private association. With very limited exceptions (such as explicit racial restrictions¹²⁸ covered by Title VIII in any case¹²⁹) Ellickson argues that the original rules, or "private constitution," of a homeowners association should be beyond the reach of "external legal norms."¹³⁰

Because Ellickson fails to define voluntariness, we are left to speculate about exactly what arrangements are sufficiently voluntary to justify defining an entity as private rather than public. Perhaps "voluntary" refers to the freedom to move into or to refrain from moving into a home that is part of a homeowners association. But if this is all that Ellickson means by voluntary, then city residence is voluntary as well.¹³¹ In theory, one may move into a city or refuse to do so,

Issue of Gated Public Streets Echoes Through Hollywood After Ruling, L.A. TIMES, Jan. 25, 1993, at 1. Although this right was recently struck down as inconsistent with the State Vehicle Code, the pro-gate groups are planning an appeal. See *id.* The right to privatize public roadways was justified by analogy to private property concerns; as one gate advocate argued: "If there's nothing to stop a new development from having security gates, why should there be anything to stop an established neighborhood?" Penelope McMillian, *Keepers of the Gates: Are Neighborhood Barriers Balkanizing Los Angeles?*, L.A. TIMES, Feb. 2, 1992, at B1.

¹²⁷ Robert C. Ellickson, *Cities and Homeowners Associations*, 130 U. PA. L. REV. 1519, 1519-20 (1982).

¹²⁸ It is significant that Ellickson excludes explicit racial restrictions from the permissible association rules, because Ellickson's assertion that homeowners associations are strictly voluntary and his suggestion that the associations are self-validating and should be judged only according to their own purposes is an argument with a pedigree — it is precisely the argument used to justify racially restrictive covenants. See *Shelley v. Kraemer*, 334 U.S. 1, 13-14 (1948). Ellickson exorcises the specter of an explicitly racially restrictive association, but, given income and lifestyle disparities between the races, it is likely that the unfettered associations that Ellickson advocates would be overwhelmingly racially homogeneous.

¹²⁹ See 42 U.S.C. §§ 3601-3619, 3631 (1988 & Supp. IV 1992).

¹³⁰ Ellickson, *supra* note 127, at 1526-29.

¹³¹ In a reply to Ellickson's article, Professor Frug asks whether Ellickson's voluntariness is a post hoc justification for exempting the actions and rules of homeowners associations from public review, or whether Ellickson means to suggest "that we make an inquiry in each case to

or move out if the conditions of residence change. Hence, there is "no difference at all — no legitimate public/private distinction at all — between cities and homeowners associations."¹³²

Moreover, such a "perfect" voluntariness assumes that space is transparent and income disparities irrelevant. It is impossible to determine to what extent the buyer chooses the package of regulations and benefits that constitutes a homeowners association and to what extent she chooses a home as a result of uniqueness of location, or topography, or sheer scarcity of housing elsewhere in the vicinity, and purchases *in spite of* a homeowners association. Just as in the case of Tiebout's cities, Ellickson's homeowners associations may survive despite, rather than because of, the wishes of many of the residents.

Furthermore, homeowners associations, no less than cities, define political spaces. The rules of a homeowners association create a political sphere just as do the laws of a city. A homeowners association, like any community with the power to preserve and perpetuate itself, is coercive: it must assert its own interests against the interests both of outsiders and, at times, of some of its own members.

Because homeowners associations may exercise greater powers than cities and stifle communication among members and between members and outsiders,¹³³ the risk that the communities created by such associations are tautologically justified and defined¹³⁴ and that the internal policies of the association generate conformity rather than reflect consensus is increased. In the context of geographically defined associations, the question is not whether we want "voluntary" or "coercive" organizations, because every spatial association is in some sense both and neither, but rather what type of associations we will permit to monopolize scarce real estate and to what degree we will allow them to do so.

determine whether the association was in fact originally formed by its residents." Gerald Frug, *Cities and Homeowners Associations: A Reply*, 130 U. PA. L. REV. 1589, 1590 (1982). As Frug points out, such an inquiry would not distinguish homeowners associations from cities, but "some of each from others of each." *Id.* Additionally, such an inquiry would fail to confront the tautology of community self-determination. *See supra* p. 1860. The fetishism of origins that characterizes the contractarian notion of association is ill-suited to a spatial context in which the original "contract" affects individuals distant from the agreement in both space and time (nonparties include both those who were not privy to the contract because they were excluded at the time it was made and those who, upon entering the association at a later time, find themselves subject to a contract not of their making). It is this feature that makes the association's rules more like a government than a private contract.

¹³² Frug, *supra* note 131, at 1591.

¹³³ *See Note, The Rule of Law in Residential Associations*, 99 HARV. L. REV. 472, 486 (1985) ("The very existence of state-enforced association rules discourages the exercise of civil rights by association members [T]he existence of illiberal rules may, over time, have a more profound influence in stifling heterogeneity").

¹³⁴ *See supra* p. 1860.

III. THE POLITICAL GEOGRAPHY OF THE DEMOCRATIC CITY: A PROVISIONAL MAP

The foregoing portion of this Article has been, in part, an attempt to locate geographically defined associations in their spatial context, to examine how such associations shape political and social space, and to suggest how they are in turn shaped by the spaces they occupy. Local government doctrine attempts to justify the existence of localities by an appeal to a commitment to democracy in two inconsistent ways: by representing local government as a mere delegate of a larger democracy and by representing local government as an autonomous democracy in its own right. Neither approach is tenable. If local government is a mere delegate of a larger democracy, the relief that it theoretically is to provide from the potentially oppressive nature of majoritarianism and the distance of centralized bureaucracy is lost. But if local government is an autonomous sovereign, the boundaries that define the government require a prior and external justification to avoid circularity. Nor can a distinction between public and private associations guide us — both public and private entities that control space are in some sense coercive and thus raise similar political concerns. Localities are neither sovereigns nor delegates, neither freely chosen nor wholly imposed; rather they are altogether distinct political agents, and as such require a distinct theory of law and justice.

This Article has taken as a backdrop the commitment to democratic principles that guides judicial and especially constitutional decisionmaking. Judicial decisions and policy analysis of decentralized political entities, both public (local governments) and private (homeowners associations and other contractually created governments), are informed by normative commitments to democracy, individual autonomy, and private property. Political theory attempts to describe the relationship of these concepts to each other and to our political institutions. This Part attempts to place two of the more prominent competing manifestations of democratic political theory in the context of a structure of racially identified space.

I have argued that the tacit misconceptions of opaque and transparent political geography have hindered legal and policy analyses of geographically defined political entities by representing such entities as natural and uncontroversial and/or as inconsequential when they are, in fact, legally created and politically and racially significant. Here I argue that certain veins of democratic and legal theory tend to suggest corresponding conceptions of political space and hence of local and decentralized government. I use the construction “tend to suggest” to indicate that no political theory explicitly argues for or actually justifies any particular conception of political space: opaque and transparent conceptions of political space, and the views of local

government that correspond to them, are, in this context, always tacit *misconceptions*.

Democratic theory provides a normative framework for understanding political institutions and relations. Such a framework can help us to determine what rôle political geography *ought* to play in promoting a political system that more fully reflects the best of democratic ideals.

The autonomous status of communities with internal processes of self-definition is one with deep resonance in American political thought. For those who feel that democratic politics is a politics of interpersonal dialogue and participation, the position of such groups in a democratic society is both an indispensable underpinning and a constant challenge to American institutions and ideals. Democratic theory has developed an important place for associations and associational rights, rights that racial and cultural groups are among the most likely to seek to exercise (and to be excluded by). Thus, many visions of democracy tacitly include racial-group or cultural rights,¹³⁵ although these rights are generally understood to be "associational" and thus individual rather than group-based.¹³⁶

This Part also explores theoretical perspectives on race relations as a normative guide to understanding how political geography might better structure such relations. I argue that the dominant race relations paradigm today oscillates between integrationism/assimilationism and separatism/isolationism and, further, that this oscillation can be seen in part as a function of the now-familiar oscillation between opaque and transparent conceptions of political space.

Finally, this Part suggests that the norms underlying democratic theory and racial-identity politics fit uneasily within either an opaque or a transparent view of political space and therefore demand that we pay closer attention to political geography. Ultimately, such attention may help to remedy the present structure of racially identified political space.

A. Mapping the Position of Racially and Culturally Defined Communities in Contemporary Political Theory

This section examines two competing strands of contemporary democratic theory: interest group pluralism and civic republicanism.

¹³⁵ See, e.g., Frank I. Michelman, *Law's Republic*, 97 YALE L.J. 1493, 1530 (1988) ("[D]oes anyone doubt the primary and crucial role . . . of the emergent social presence and self-emancipatory activity of Black Americans? Does anyone doubt that their impact on the rest of us has reflected their own oppositional understandings of their situation . . . developed, in part, through conflict within their own community . . . ?" (footnotes omitted)).

¹³⁶ The notion of associational communities is individualist because it assumes the ontological priority of the individual: it is the individual who associates and once she associates the association she forms with others deserves recognition.

Crudely stated, pluralism insists that politics involves a series of fights between groups, and produces political winners and losers. Republicanism, by contrast, posits that politics entails a process of citizen self-creation in which each individual or group comes to embrace its identity as a democratic citizen and thus to see the legitimacy of a given political result, even if it does not agree with that result.¹³⁷

1. *The Fallacy of Transparent Space: The Spatial and Cultural Pluralist Critique of "Interest Groupism."* — Interest group pluralism assumes an isolated consumer-citizen who asserts primarily economic claims in politics. Each interest group participates in a political marketplace and seeks its own advantage; because no normative ideal guides politics, the only right policy is the one that wins in the political fight. Interest group pluralism generally assumes that (or does not care whether) all claims have equal weight and all citizens have equal power: "The political game is defined on analogy with the market. Various interests compete with one another for people's loyalties, and those that amass the most members and money have the market advantage . . . [Pluralism] makes no distinction between . . . selfish interests and normative claims to justice . . ."¹³⁸

In a variant of this model, the process occurs between a plurality of governmental entities, or governmental "commodities." Political conflict thus occurs between governments for the patronage of individuals and groups. This view imagines that a plurality of desires can be accommodated through a market-like dynamic in which government remains politically neutral and simply responds to constituent/consumer demands. Government is thought to aspire to apolitical goals of "efficiency" and "business-like" operation, and of providing its clients with the most goods at the least cost. It is this model that Charles Tiebout relies on in asserting that local governments could be seen as commodities that citizens would choose through entry,¹³⁹ and it is this model that underlies Robert Ellickson's argument that homeowners associations are properly private governments that citizens choose or consume through contract, rather than control through democracy.¹⁴⁰

Interest group politics reflects a transparent conception of political space. It assumes that space is either the inert context of political-

¹³⁷ Michelman suggests slightly more than this. "I have meant," he writes, "to allow . . . for the possibility of cases in which validation occurs when participants, rather than 'abandoning' their [prepolitical] commitments, come to 'hold the same commitments in a new way.'" Michelman, *supra* note 135, at 1527 (quoting HANNA F. PITKIN, *FORTUNE IS A WOMAN: GENDER AND POLITICS IN THE THOUGHT OF NICCOLO MACHIAVELLI* 279 (1984)).

¹³⁸ IRIS M. YOUNG, *JUSTICE AND THE POLITICS OF DIFFERENCE* 72 (1990).

¹³⁹ See *supra* pp. 1881-83.

¹⁴⁰ See *supra* pp. 1884-85.

marketplace interactions or that space is one of the goods to be fought over in the course of politics. It therefore overlooks the role of political space in constituting social groups. Thus spatial communities are seen as marketplace commodities into which anyone with enough cash can buy entry, and the political process is understood to occur in a neutral political space and to consist of individuals who form groups for purely strategic purposes. The community-as-commodity model thus ignores the fact that the marketplace is spatially located and spatially segregated. Racially identified spaces make movement across boundaries much more costly than this model acknowledges. With boundaries racially less permeable, racial groups have fewer choices in the community marketplace.

The interest group model also often assumes a centralized government and conceives of citizens as individuals who interact with it in an unmediated fashion. This further reflects a conception of political space as transparent: space is irrelevant to the operation of government; it is merely the context of interaction among individuals and the convenient medium of the segmentation of centralized state power. This is the view inherent in the *Hunter* decision and in the Court's reasoning that jurisdictional boundaries were "inherently arbitrary" in *Rodriguez*.

A view of political space as transparent necessarily devalues sub-cultural communities and community bonds, for most such communities are spatially defined and transmit their norms through small communal institutions and close personal interaction. Because it ignores the existence and importance of such communities, both for their members and for true democratic participation, the interest group model can only conceive of such communities as opportunistic political interest groups, no different from political action committees, professional organizations, or corporate lobbying groups.

2. *The Fallacy of Opaque Space: The Spatial and Cultural Pluralist Critique of Republicanism.* — In contrast to interest group pluralism, republicanism seeks "to promote the interconnectedness of all citizens [in a jurisdiction] and their ability to arrive at a collective definition of the common good, which the state then implements."¹⁴¹ This citizenry has no place for "organized disadvantaged groups as separate political entities,"¹⁴² for such groups would destroy the sense of common purpose and community by introducing group-specific demands and concerns into the political discourse, replacing the common good with narrow interests. Republicanism often assumes that the sole

¹⁴¹ Cynthia V. Ward, *The Limits of "Liberal Republicanism": Why Group Based Remedies and Republican Citizenship Don't Mix*, 91 COLUM. L. REV. 581, 583 (1991).

¹⁴² *Id.*

function of group identification in democratic politics is to lobby for redistributive measures or remedies to disadvantage. In so doing, republicanism too easily diminishes the citizen-based claims of cultural groups to participate in and transform society *through* their assertion of difference, rather than in spite of it.¹⁴³

The republican insistence on a universal citizenship¹⁴⁴ that cannot accommodate group-based politics does not take account of the role of political space, which segregates citizens by racial-group identification. Many republican theorists assert that the ideal of republican citizenship cannot be realized at the level of mass politics, but instead must emerge at the decentralized local level.¹⁴⁵ But the character of local citizenship will depend on the demographic composition of the locality, which is itself partially determined by political geography. If the category of "citizen" is geographically defined (such as in a residency requirement) then the character of local political geography will determine the character of the political process. Unless political space is taken into account, republican universalism will in practice refer to nothing more than the universe of citizens within a jurisdiction that may already have excluded most dissenting voices. Consensus will be purchased at the price of homogeneity, and the process of deliberation will be "distorted by the *mistaken* appearance of a common set of interests."¹⁴⁶

¹⁴³ Admittedly Professor Ward might be forgiven for assuming that minority group claims are exclusively distributional or remedial because that is how the pluralist theory she critiques conceives of and institutionalizes them. But the republican ideal aspires to a participatory citizenship in which citizens' attempts to alter society are entitled to a fair and attentive hearing. There can be nothing in the republican normative framework to prevent such claims from being culturally and group-based without doing severe violence to the promise of republican citizenship.

¹⁴⁴ See, e.g., Cass R. Sunstein, *Beyond the Republican Revival*, 97 YALE L.J. 1539, 1554-58 (1988) (arguing that universalism is a basic principle of republican thought). Sunstein's use of "universalism" is, by his own account, "idiosyncratic," in that he means by it a *pragmatic* commitment to the ideal of a common good that, far from excluding group identification, actually requires the input of self-identified groups. Sunstein's universalism is "pragmatic in character" and thus does not rest upon a belief in essential sameness among individuals or an objective universal good. *Id.*

¹⁴⁵ Republican theorists consistently reject strictly representative democracy as insufficient to promote communal agreement on political goals (a precondition for law to become "self-given" rather than coercive) and insist that citizens must actually engage each other in meaningful dialogue about normative values. Such an interaction need not be face-to-face, but it cannot occur across vast distances between extremely disparate communities; a good deal of decentralization of political decisionmaking is necessary to achieve the republican goals of transformative citizenship. See Michelman, *supra* note 135, at 1526-27 (explaining that "a political process can validate a societal norm as self-given law only if . . . there exists a set of . . . conditions such that . . . a dialogic modulation of one's understandings is not considered or experienced as coercive"); Sunstein, *supra* note 144, at 1555-56 ("Republican approaches . . . seek mechanisms for . . . decentralization, local control, and local self-determination.").

¹⁴⁶ Sunstein, *supra* note 144, at 1588 (emphasis added). Iris Marion Young identifies this

It may seem that republican ideals and a systemic recognition of racial and cultural pluralism are incompatible, but it is the refusal to recognize pluralism that is incompatible with republican principles. It is often when the republican vision of the citizen pretends to be universal that it is in fact most parochial. Exclusion forecloses the possibility of democratic dialogue that republicanism envisions. Thus, decentralized power remains a source of tension within republican thought: this tension is not resolved by denying the important role of cultural groups in the democratic process or by characterizing their voice in democratic politics as only a claim for remedial programs or, worse yet, as "special-interest lobbying."

The notion that homogeneous political entities can or should exist in disregard of outsiders is a function of a view of political space as *opaque*. The republican ideal of political communities that come to agree through political interactions assumes (sometimes explicitly, often implicitly) a small, decentralized polis. But republicanism does not suggest principles for defining such small political communities, and generally avoids this important issue by arguing in the abstract or by vaguely referring to "local government," evoking a romantic view of the New England town hall or the Hellenic city-state.¹⁴⁷ In so doing, republicanism implicitly suggests that small, spatially defined communities can establish non-controversial political boundaries. Geography is tacitly invoked to reify and justify political communities, and to ground boundaries in a political space that is not examined — that is seen as opaque.¹⁴⁸

This is the view of space that held sway in *Holt's* residency requirement analysis, in *Milliken's* refusal to examine school district boundaries, and in *Euclid's* and *Eastlake's* conceptions of local de-

problem in the communitarian ontology that often underlies the republican norm of citizenship. She writes:

The ideal of community . . . validates and reinforces the fear and aversion some social groups exhibit toward others. If community is a positive norm, that is, if existing together with others in relations of mutual understanding and reciprocity is the goal, then it is understandable that we exclude and avoid those with whom we do not or cannot identify.

YOUNG, *supra* note 138, at 235.

¹⁴⁷ See Michelman, *supra* note 135, at 1531 (asserting that republican dialogue must occur in "town meetings and local government agencies[,] civic and voluntary organizations," and numerous other arenas, all of which are characterized by face-to-face interaction); Sunstein, *supra* note 144, at 1548–57 (stressing the importance of deliberation in the abstract). By arguing in the abstract, republicans often avoid the issue of how republican deliberation is to be achieved in a media-centered mass democracy. When republicans attempt to address this critical issue, they usually advocate some form of decentralized politics. See *id.* at 1556.

¹⁴⁸ Neither Michelman, nor Sunstein, addresses, even tangentially, political geography. Pluralist or "liberal" republicanism needs a theory of political geography in order to address the tension between localism, and decentralized politics, on the one hand, and a "universalism" or "jurisgenerative" politics which must include diverse perspectives, on the other.

mocracy as self-validating. An opaque conception of political space fails to examine ecological variation among political jurisdictions, and the concentration of valuable tax sources in certain communities and needy persons in others. Further, opaque political space masks the tautology of community self-definition. In so doing, it gives racial minority communities less recognition than they deserve, for, instead of examining the legitimate associational and cultural bases for community self-assertion, this view assumes that questions of community assertion are prepolitical, that communities form because of natural, preexisting affiliations rather than as a result of socio-political structure. In this way, the associational claims to insularity and exclusion are given precedence over the most political associational and cultural claims to inclusion, and to the ability to transform society through the assertion of difference.

3. *The Democratic City Within and Outside Liberalism.* — Although the republican and the pluralist conceptions appear to be opposed, they are opposed within a more general paradigm of agreement: the conception of the liberal individual as the only social agent in politics.¹⁴⁹ An all-too-often myopic individualism renders space both transparent and opaque: individuals are imagined either to move through a spatial milieu that does not affect them and that they do not affect, or they are imagined to exist in prepolitical communities that are naturalized by spatial boundaries.

Both pluralism and republicanism account for the position of community through the device of the association: associations are organized political interest groups in the pluralist conception and are relatively prepolitical communities that help to constitute the citizen in the republican view. But the association is often *only* a device, a conceptual trope that allows for the existence of groups that mediate between the state and the individual, while simultaneously denying their existence. For, as its name implies, the association is understood as merely an aggregation of individuals, even if the aggregation is defined by some particular practice. "The aggregate model . . . reduces the social group to a mere set of attributes attached to individuals. The association model also implicitly conceives the individual

¹⁴⁹ Liberalism and republicanism are often represented as opposed, the former arguing for individual interests and strategic politics, and the latter for communal notions of the good and deliberative politics. However, as Michelman points out, this opposition is "more facile than interesting." Frank I. Michelman, *Conceptions of Democracy in American Constitutional Argument: Voting Rights*, 41 FLA. L. REV. 443, 449 (1989). Republicanism also embraces individualism and argues that individual autonomy is the result of political interaction. See, e.g., Michelman, *supra* note 135, at 1513-15, 1517-18. My purpose here is not to argue against individualism, but rather to argue that individualism comes with a covert normative structure on both the pluralist and the republican accounts — a structure that makes it difficult to understand the political claims of minority racial and cultural groups as anything other than strategic, distributive, remedial, or separatist.

as ontologically prior to the collective, as making up, or constituting, groups."¹⁵⁰

Just as I criticized a *typical* interest group pluralism and republicanism, I have also criticized a liberal *type* of political thought above. There are articulations of liberal political theory that are potentially more hospitable to racial-group identification and to a recognition of the salience of political geography. Many liberals would argue that racial groups are not inconsistent with, but are assimilable to, the general liberal typology that conceives of individuals as ontologically prior to groups. On such a view, liberal pluralists should support racial-group identification because it is a precondition to meaningful individual choice.¹⁵¹ Similarly, liberal republicans argue that individually based rights to privacy and association *are* important, but primarily as a means of facilitating the group identification that allows individual citizens to develop views that are relatively independent of the state.¹⁵²

I disagree with the critics who insist that such attempts to combine insights about the necessity of group and cultural membership with pluralist and republican thought are hopelessly self-contradictory.¹⁵³ Such a criticism misses the point that *all* political thought deals in tensions that are an unavoidable feature of the political.¹⁵⁴ The best of political thought recognizes such conflicts and attempts to mediate them. I believe that my proposals and the analysis herein are largely consistent with these more sophisticated forms of liberalism, pluralism, and republicanism.

B. Seeing Through but Not Overlooking Space: Statutory and Doctrinal Recognition of the Role of Political Space

Thus far we have focused on the general tendency in legal analysis both to overlook the consequences of political space in geographically defined entities and to cede talismanic significance to politically created boundaries, thereby both ignoring and reifying political space. Although this is the dominant tendency in legal analysis and doctrine,

¹⁵⁰ YOUNG, *supra* note 138, at 44. I would add to Young's conception that the "authentic self" stands apart from, and outside of, political space.

¹⁵¹ See, e.g., WILL KYMLICKA, *LIBERALISM, COMMUNITY, AND CULTURE* 197 (1989) (arguing that group-based rights are consistent with liberal political thought).

¹⁵² See, e.g., Michelman, *supra* note 135, at 1534-36.

¹⁵³ See, e.g., Chaudras Kukathas, *Are There Any Cultural Rights?*, 20 *POL. THEORY* 105, 118-24 (1992) (criticizing Will Kymlicka's liberal defense of cultural rights); Ward, *supra* note 141, at 583-84, 589-96, 603-06 (criticizing Michelman's and Sunstein's republican defenses of group-based rights for oppressed minorities).

¹⁵⁴ See generally Duncan Kennedy, *The Structure of Blackstone's Commentaries*, 28 *BUFF. L. REV.* 205, 211-13 (1979) (arguing that legal and political analysis is characterized by a "fundamental contradiction" between the need for individual autonomy and the need for affirmation and solidarity in groups).

there is also precedent for a more sophisticated understanding of political geography. This section presents examples of this recognition of political space and its consequences for residential demographics and community definition. Taken together, the following approaches to political space provide the statutory and doctrinal tools necessary to implement an explicit and workable epistemology of political space. My purpose here is both to identify legal precedent for an awareness of political space and to suggest that the insights inherent in the following cases and statutes should be applied to legal analysis of all political spaces, both public and private.

1. *The Fair Housing Act in Huntington: An Associational Right to Desegregation?* — The Fair Housing Act¹⁵⁵ reflects a recognition that *private* as well as public discrimination entrenches and perpetuates racial segregation. Because the recently amended Fair Housing Act applies to both governmental entities and private interests, it may nullify the requirement that a grievance be directly attributable to state action not only in housing discrimination cases, but in all cases challenging racially identified residential space. Currently, it is unclear whether the full promise of the Act will be realized, or whether courts will adopt a more limited interpretation. However, at least one case illustrates the Act's potential to attack the structure of racially identified residential spaces.

In *Huntington Branch, NAACP v. Town of Huntington*,¹⁵⁶ the NAACP challenged under the Fair Housing Act a policy that restricted multi-family housing projects to a largely minority "urban-renewal" area.¹⁵⁷ The dispute concerned the efforts of a private non-profit organization, Housing Help, Inc., to locate a multi-family housing project in a predominantly white neighborhood.¹⁵⁸ Huntington opposed the project and rejected the proposed zoning variance on the ground that the location was inappropriate "due to lack of transportation, traffic hazard and disruption of the existing residential patterns."¹⁵⁹ The court applied a disparate impact analysis and found that the town's refusal to rezone the proposed site for multi-family housing both perpetuated segregation and disparately impacted minorities "by restricting low-income housing needed by minorities to an area already 52% minority."¹⁶⁰ The court found that "[o]utside [of

¹⁵⁵ 42 U.S.C. §§ 3601-3619, 3631 (1988 & Supp. IV 1992). I will also refer to the Fair Housing Act as "the Act" and "Title VIII."

¹⁵⁶ 844 F.2d 926 (2d Cir.), *aff'd*, 488 U.S. 15 (1988).

¹⁵⁷ *See id.* at 928.

¹⁵⁸ *See id.* at 930-31.

¹⁵⁹ *Id.* at 932. Following the general pattern of rhetoric in cases involving racially identified space, the town cited the "existing residential patterns" as one of the reasons for opposing the plan even though this was precisely what was at issue.

¹⁶⁰ *Id.* at 937-38.

this urban-renewal area] . . . the Town's population was overwhelmingly white. Of the 48 census tracts in the Town in 1980, 30 contained black populations of less than 1%."¹⁶¹

In *Huntington*, the court relied on Title VIII to insist that racially identified space be redefined. By focusing on the town as a whole, the court was able to identify a broad pattern of racially identified space and determine that the town's attempt to block the multi-family housing would perpetuate segregation.¹⁶² An important component of the court's disparate impact analysis was its contention that the community as a whole was harmed by segregation. Rather than an inverted perspective that treated complex social patterns of racialized space as the aggregation of individual decisions and black individuals as social forces to be controlled, the *Huntington* court viewed segregation as a consequence of the legally created structure of racialized space and saw both blacks and the community as a whole as victims of that structure. The assertion that Title VIII guarantees *everyone* the right to live in desegregated spaces allows us to avoid a view of desegregation cases as inherently "us-against-them" or, worse yet, "us-against-the-world" conflicts, and to see them as conflicts over values and goals. We need not frame the debate as one that asks the courts to favor one interest group over another, but instead as one that asks the courts to favor one value over another.

The value of creating democratic and desegregated space may not always prevail, but I submit that it will prevail more often than not. A focus on values will often reveal how limited and unappealing the countervailing position really is. Sometimes a locality seeking to restrict low-income housing will have a real associational claim that deserves consideration, but often it will not. Sometimes private entities will have strong privacy or property justifications for restrictions that disparately impact minorities, but they should be required to articulate them and the court should weigh them against the strong legislative and constitutional mandates for desegregation. If we choose

¹⁶¹ *Id.* at 929. Even these highly segregated areas of Huntington were more integrated than many localities. For example, 1980 census data indicate that the City of Glendale, California had a total black population of only 0.06%. See DAVIS, *supra* note 116, at 214 n.35. This is evidence that if the structure of racially identified space is to be remedied, interlocal, as well as intralocal, disparities will have to be confronted.

¹⁶² It is possible that the *Huntington* approach could yield the same results if applied to a municipality that barred low-income housing altogether. My analysis of local government cases suggests that courts may cede extraordinary significance to local boundaries, viewing the locality itself as the only relevant area of analysis. This would seriously limit the scope of Title VIII because the segregative and discriminatory impact of exclusionary zoning on a city-wide basis is often greater than that in *Huntington*. Many cities — some fairly large — are segregated enclaves in larger metropolitan areas. For example, Mike Davis reports that many Southern California cities had "virtually no black population in 1980." DAVIS, *supra* note 116, at 214 n.35.

to sacrifice the goals of racial equality and liberty for some other goal, we should at least be aware of exactly what we are doing.

Contrast the approach to segregation taken in *Huntington* with the integration maintenance policy of the defendants in *United States v. Starrett City Associates*.¹⁶³ The *Starrett City* case involved a privately owned, but federally subsidized, apartment complex in Brooklyn.¹⁶⁴ The federal subsidy was granted upon the assurance of Starrett City's developer that it intended to create a racially integrated community.¹⁶⁵

Starrett City followed HUD guidelines in order to comply with this condition. The HUD guidelines rested on the theory that lasting integration is not feasible under normal housing-market conditions because once a neighborhood's population of black residents reaches a "tipping point" — generally understood to be somewhere between ten and thirty percent¹⁶⁶ — whites will exit en masse and the neighborhood will become virtually all black.¹⁶⁷ Thus, in order to maintain an integrated complex, the owners of Starrett City Associates established racial quotas, limiting the number of black residents. As a result, waiting periods for vacancies were over ten times as long for black applicants as for whites.¹⁶⁸

This method of integration maintenance reflects a deference to private racism regardless of who or what entity implements the policy.¹⁶⁹ In a perspective both myopic and hypermetropic,¹⁷⁰ integration

¹⁶³ 840 F.2d 1096 (2d Cir.), *cert. denied*, 488 U.S. 946 (1988). The Court of Appeals struck down Starrett City's integration-maintenance policy as a violation of the Fair Housing Act. *See id.* at 1100-01, 1103.

¹⁶⁴ *See id.* at 1098.

¹⁶⁵ *See id.*

¹⁶⁶ *See* Bruce L. Ackerman, *Integration for Subsidized Housing and the Question of Racial Occupancy Controls*, 26 STAN. L. REV. 245, 251 (1974) (observing that tipping is thought to occur after the black percentage of the population passes a point between 30% and 50%); Rodney Smolla, *Integration Maintenance: The Unconstitutionality of Benign Programs that Discourage Black Entry to Prevent White Flight*, 1981 DUKE L.J. 891, 895.

¹⁶⁷ *See* ANTHONY DOWNS, *OPENING UP THE SUBURBS: AN URBAN STRATEGY FOR AMERICA* 69-73 (1973); Ackerman, *supra* note 166, at 251-66; Smolla, *supra* note 166, at 893-98.

¹⁶⁸ *Starrett City Assocs.*, 840 F.2d at 1099.

¹⁶⁹ Many scholars have made just this criticism. *See, e.g.,* DERRICK BELL, *AND WE ARE NOT SAVED* 152-54 (1987); Calmore, *supra* note 23, at 100-01; Smolla, *supra* note 166, at 901-07, 912-15.

¹⁷⁰ For those few legal students and scholars who still have 20/20 vision, a brief lesson in ophthalmology is in order. Myopia is often thought synonymous with "tunnel vision" but is more literally "nearsightedness" (an affliction that ails many legal scholars, prone as we are to spend long hours reading footnotes in fine print and in inadequate light; it is difficult later to see the world around us), an inability to see more than a short distance away. A myopic individual would thus "fail to see the forest for the trees." Hypermetropia is "farsightedness," an inability to focus on what is right under one's nose; thus a hypermetropic individual would fail to see that the forest is made up of trees, imagining instead that she was seeing some undifferentiated and irreducible forest entity (unfortunately, obsessive pursuit of legal scholarship all too often produces this condition as well). I feel fortunate that eyeglasses are now fashionable.

maintenance sees racism as solely the result of individual choices, and fails to see the role of institutional structures in shaping those choices, while at the same time *looking right past* individual bigotry when evaluating the purpose or motive behind the policy.

However deplorable its approach may have been, Starrett City was nonetheless as much a victim as a perpetrator of racialized geography. *Starrett City's* defendants could not promote equal access and integration simultaneously because they faced a structure that spread far beyond the walls of Starrett City. In an environment in which desegregated space is in short supply and blacks and other minorities are viewed as social problems rather than as members of society, Starrett City had no choice other than to build racial filters into its vision of community.

From the point of view of isolated individuals or groups, it is unfair to impose the burdens of integration on particular communities (but still no more unfair than to impose those burdens on racial minorities). From the point of view of the citizenry as a whole, however, it is *not* unfair to expect every community, association, and enterprise to contribute to a remedy for racist structures to which each has contributed, but for which none can be held ultimately responsible. The roots of these structures grow out of public policies of the past, and the reservoirs of hate and distrust that irrigate this tree are replenished by policy, both public and private. To carry the metaphor to its conclusion, the tree may seem to be a natural outgrowth of organic soil, but ultimately we, as citizens, are responsible for the bitter fruit it yields.

2. *New Jersey's Mount Laurel Decisions and Regional Contribution Agreements.* — Although my doctrinal analysis has primarily drawn on Federal Court of Appeals and Supreme Court cases, New Jersey's *Mount Laurel* decisions are of such importance that they are relevant to our more general survey of decentralized geographic power. The *Mount Laurel* cases have become a holy trinity¹⁷¹ for many housing law activists and scholars, providing legal precedent for important new remedies to local government and housing inequalities. Although the *Mount Laurel* cases deal exclusively with public law and public entities, I would argue that their sophisticated understanding of geographic boundaries, community rights, and inter-community responsibilities is applicable to any geographically defined entity that exercises legally enforced power.

¹⁷¹ The *Mount Laurel* saga spans three separate decisions: Southern Burlington County NAACP v. Township of Mount Laurel, 336 A.2d 713 (N.J.), *cert. denied*, 423 U.S. 808 (1975); Southern Burlington County NAACP v. Township of Mount Laurel, 456 A.2d 390 (N.J. 1983); Hills Dev. Co. v. Bernards Township, 510 A.2d 621 (N.J. 1986). These cases are commonly referred to as *Mount Laurel I*, *II*, and *III*, respectively.

(a) *The History of the Mount Laurel Decisions.* — The principle underlying the *Mount Laurel* decisions is found in New Jersey's statutory and constitutional recognition of a regional "general welfare" for which all localities in a geographic region bear responsibility.¹⁷² In *Mount Laurel I* the Court found an obligation "for each [developing] municipality affirmatively to plan and provide [for] . . . the reasonable opportunity for . . . low and moderate cost housing,"¹⁷³ and therefore disallowed Mount Laurel's exclusionary zoning. The court held that Mount Laurel's zoning ordinance, which restricted development in over half the town to single-family homes on lots of one-half acre or larger, violated New Jersey's zoning enabling act¹⁷⁴ and was enacted in order to maintain low property tax rates without regard for the general welfare.¹⁷⁵ The court also found that this type of zoning was not unique to the Township of Mount Laurel, but was so pervasive among developing cities as to be of state-wide concern. This finding of a cumulative regional effect of exclusionary zoning by separate municipalities led the court to hold that "the general welfare which municipalities like Mount Laurel must consider extends beyond their boundaries and cannot be parochially confined to the claimed good of the particular municipality."¹⁷⁶ In particular, the court held that Mount Laurel was obliged to plan and provide for appropriate low- and moderate-cost housing, and that "every municipality . . . must bear its fair share of the regional burden."¹⁷⁷

Mount Laurel I thus reflected a recognition that politically created spaces are not insular, but are instead part of a larger community, which they affect and to which they owe consideration. At the same time, *Mount Laurel I* did not require existing municipalities to be subsumed under a centralized administration charged with advancing the general welfare. The court left it to municipalities to take whatever action was necessary to fulfill their fair share of the regional housing need.¹⁷⁸ Inherent in the *Mount Laurel I* court's decision was a view of local governments as both autonomous and interdependent; the court trusted that local governments would exercise their power

¹⁷² See *Mount Laurel I*, 336 A.2d at 727-28.

¹⁷³ *Id.* at 728.

¹⁷⁴ See *id.* at 719-20, 725, 730-33.

¹⁷⁵ See *id.* at 730-31. The court noted that through exclusionary zoning a municipality "in effect builds a wall around itself to keep out those people or entities not adding favorably to the tax base." "One incongruous result is . . . developing municipalities rendering it impossible for lower paid employees of industries they have eagerly sought and welcomed with open arms . . . to live in the community where they work." *Id.* at 723.

¹⁷⁶ *Id.* at 727-28.

¹⁷⁷ *Id.* at 733.

¹⁷⁸ See *id.* at 734. The court warned that, "[s]hould Mount Laurel not perform as we expect, further judicial action may be sought by supplemental pleading in this case." *Id.*

as members of a larger community that included the low- and moderate-income persons of the region.

Mount Laurel I's vision of local governments was laudable, but it was unrealistic in a legal structure in which economic and political incentives remained unchanged. As a result, the court was forced eight years later to revisit the question because of "widespread non-compliance with the constitutional mandate of [the] original opinion in this case."¹⁷⁹ In *Mount Laurel II* the court articulated specific guidelines for defining and fulfilling the *Mount Laurel I* obligations.¹⁸⁰ Most notably, the court reaffirmed and strengthened the requirement that municipalities take affirmative measures, such as density bonuses and mandatory set-asides, to encourage the construction of low- and moderate-income housing,¹⁸¹ and established a judicial oversight mechanism under which the state would be divided into three regions, each supervised by a judge who would handle all *Mount Laurel* claims in the region.¹⁸²

In 1985, the New Jersey legislature passed the New Jersey Fair Housing Act,¹⁸³ which codified the *Mount Laurel I* and *II* fair-share requirement and created a Council on Affordable Housing to supervise the allocation of fair-share housing burdens under the Act. The Act was designed to replace litigation with administrative supervision.¹⁸⁴ Under the Act, each municipality is required to develop a "housing element" of its general plan, which the Council then reviews. Thus, after 1985, *Mount Laurel* claims were pressed under the terms of the Act rather than under *Mount Laurel I* and *II*.

The New Jersey Fair Housing Act's major innovation is the provision for the transfer of fair-share housing obligations from one city to another through Regional Contribution Agreements (RCAs).¹⁸⁵ Under an RCA, the receiving municipality is compensated by the transferring municipality for accepting part of its share of low- or moderate-income housing. Based on traditional contract principles, RCAs are designed to avoid inefficiencies that would result if low- and moderate-income housing were mandated in areas where the costs or "negative externalities" of such housing were significantly higher than in other areas that could absorb the housing.¹⁸⁶

¹⁷⁹ Southern Burlington County NAACP v. Township of Mount Laurel (*Mount Laurel II*), 456 A.2d 390, 410 (N.J. 1983).

¹⁸⁰ See *id.* at 421-59.

¹⁸¹ See *id.* at 448.

¹⁸² See *id.* at 439.

¹⁸³ 1985 N.J. Laws 222 (codified as N.J. STAT. ANN. § 52:27D-301 to -329 (West 1986)).

¹⁸⁴ See *id.*; see also Hills Dev. Co. v. Bernards Township (*Mount Laurel III*), 510 A.2d 621, 634 (N.J. 1986) (holding that New Jersey's Fair Housing Act is constitutional and transferring pending cases to the Council for administrative oversight).

¹⁸⁵ See N.J. STAT. ANN. § 52:27D-312.

¹⁸⁶ See Harold A. McDougall, *Regional Contribution Agreements: Compensation for Exclu-*

(b) *The Theory of Fair Share and RCAs.* — In its Fair Housing Act, the New Jersey legislature has attempted to strike a balance between local parochialism and centralized authority. At their best, RCAs recognize that a centralized approach to local planning may destroy local identity without serving anyone. Thus, rather than impose a particular housing mix, the Fair Housing Act envisions the Council on Affordable Housing as a facilitator of interlocal cooperation — a body that ensures that local boundaries do not serve to insulate cities from their housing responsibilities, while encouraging agreements by which localities can distribute low-income housing in a way that is consistent with their needs and their self-identity. RCAs reflect the *Mount Laurel* court's vision of local governments as autonomous but interdependent associations, and fair-share housing analysis recognizes that local borders can isolate the most vulnerable members of society. RCAs allow cities and suburbs themselves to decide if, when, and how housing transfers should occur. Although the assumption underlying the *Mount Laurel* decisions is that the construction of low-income housing in wealthier suburban municipalities will benefit the region as a whole, it is possible that low- and moderate-income housing construction in some suburban communities may be detrimental. As one author has observed, a straightforward mandate to all municipalities to provide more low- and moderate-income housing may produce strikingly diverse results:

Outcome A (Best Case). . . . [T]here is a large migration of low- and middle-income people, many of them black, from the central city. Access to suburban jobs enables these migrants to make major improvement in their own economic status [M]inority group children who had formerly attended largely non-white central city schools are now enrolled in predominantly white suburban schools. The result is a rapid increase in their educational progress

As some members of the central city's labor force move . . . pressure is put on the city's labor market forcing wages up

. . . .
Outcome B (Worst Case). . . . [T]he main customers for [the new suburban housing] are middle class whites who have wanted to leave the central city for some time The less affluent central city whites and most central city blacks can no more afford \$40,000 houses on quarter-acre lots than . . . \$50,000 houses on one-acre lots. . . .

The loss of a significant portion of the central city's remaining . . . middle class proves to be a severe blow [even as the city's tax base is shrinking].¹⁸⁷

sionary Zoning, 60 TEMP. L.Q. 665, 682 (1987) (citing Note, *Zoning for the Regional Welfare*, 89 YALE L.J. 748, 753 (1980)).

¹⁸⁷ John Levy, *Exclusionary Zoning: After the Walls Came Down*, in LAND USE CONTROLS: PRESENT PROBLEMS AND FUTURE REFORM 179, 179-80 (David Listokin ed., 1974).

RCAs can be seen as a mechanism designed to increase the likelihood of "Outcome A" and prevent "Outcome B." By promoting flexibility in the implementation of fair-share housing remedies — allowing a transfer of up to fifty percent of that allocation to a willing city — RCAs promote the construction of housing in regions in which "Outcome A" is likely while allowing prudent transfers of housing allocation and funds in regions where "Outcome B" is a significant risk.

(c) *Beyond Mount Laurel: Reforming RCAs.* — RCAs have come under attack as a loophole that allows wealthier cities to avoid their *Mount Laurel* obligations while failing to ensure that the compensation paid to the receiving cities actually represents the cost of providing the housing required:

It is unlikely that cities have fewer negative externalities than suburbs, or that cities can absorb negative externalities more efficiently than suburbs. . . .

The receiving municipalities that agree to an RCA will not do so because they can efficiently absorb more low income residents. Rather, they will enter the RCA because they face the stark reality of fiscal crisis¹⁸⁸

Both the risk of "Outcome B" and the inequities of RCAs negotiated between inner cities and suburbs with unequal bargaining power can be eliminated by taking the logic behind the *Mount Laurel* decisions¹⁸⁹ a step further. The *Mount Laurel* decisions take as a premise the idea that cities, although autonomous entities, are also members of a larger community from which they benefit and to which they owe some responsibility. Thus the function of fair-share requirements should not be seen as "redistributive" in the sense of robbing Peter to pay for Paul's housing, but rather as corrective, in the sense that somewhat arbitrary local boundaries are responsible for Peter's power to exclude the type of housing Paul requires (and in large part for Peter's superior resources).

This premise can be taken further to recommend reforms that will not only require Peter to allow the housing that Paul can afford, but also to allow Paul some say regarding where and how such housing should be built in order to ensure that the housing fits Paul's needs. In short, we can create a structure that encourages Peter and Paul to cooperate, to see themselves as members of a community that should work together for their common good. This does not entail destroying Peter's or Paul's autonomy, but instead merely requires destroying the

¹⁸⁸ McDougall, *supra* note 186, at 682–83.

¹⁸⁹ By "the *Mount Laurel* decisions" I mean to include *Mount Laurel I*, *II*, and *III*, and the Fair Housing Act that *Mount Laurel III* upheld.

facade that alienates them from each other even as it inextricably binds them together.

Following this logic, I propose the following reforms. These proposals are admittedly very rough sketches of possible reforms: one could be implemented alone to great effect, two or more could be implemented together, and all could be modified in a number of ways, depending on the circumstances. These proposals are offered to demonstrate that reforms that both recognize some degree of local autonomy and some degree of local interdependence are possible, and to provide a springboard for more thoroughly realized policy proposals. First, in recognition of their inferior bargaining position, receiving cities could be allowed to bargain in pools while sending cities would not. The regional "broker" or Housing Council could facilitate the creation of bargaining pools. Second, in recognition of the interconnectedness of the sending and receiving cities and suburbs, one-time payments in RCAs could be banned or severely limited in favor of ongoing obligations on the part of sending cities and suburbs to pay for maintenance of transferred housing and for the additional burden in terms of municipal services that the residents of such housing will require. Third, in an extension of the "Pigovian tax"¹⁹⁰ logic, property taxes could be reallocated between cities and suburbs by relaxing or eliminating locally based property taxes in favor of regionally based taxation. Hence the city that allows low- and moderate-cost housing instead of commercial and industrial uses and expensive housing would not suffer from an impoverished tax base, but would instead receive a portion of the wealthier city's tax revenue.¹⁹¹ Fourth, political influence could be transferred along with fair-share housing allocations. Inner-city residents who would have located in the suburbs under an unmodified *Mount Laurel* regime would retain the right to vote in the suburban municipal elections, or the inner-city community would gain political influence in suburban elections equal to

¹⁹⁰ I borrow the "Pigovian" tax reform in the context of RCAs from Professor McDougall. See McDougall, *supra* note 186, at 693-94 (citing Michelle J. White, *Suburban Growth Controls: Liability Rules and Pigovian Taxes*, 8 J. LEGAL STUD. 207, 210 (1979)). The externalities produced by municipal boundaries and exclusionary zoning necessitate the use of tax reform to produce an efficient housing-market equilibrium. Actually, my proposal goes beyond a corrective tax. It questions the very structure through which taxes are collected and tax revenues are spent, and would render local boundaries permeable for the purposes of taxation and public spending.

¹⁹¹ This reform follows the *Mount Laurel I* court's recognition that a major incentive for exclusionary zoning is tax-based enrichment, see *Southern Burlington County NAACP v. Township of Mount Laurel (Mount Laurel I)*, 336 A.2d 713 (N.J.), *cert. denied*, 423 U.S. 808 (1975), and would eliminate the economic incentive for exclusionary zoning. At the same time the reform would still allow the suburb to maintain its community character. The first three reforms are designed to isolate the community-defining or associational function of exclusionary zoning by eliminating purely economic functions. If the primary justification for exclusionary zoning is associational, localities will continue to exclude but will not get the economic windfalls.

the political influence that low-income residents would have had in the suburbs if the fair-share housing had been built there.¹⁹²

These reforms respect the importance of decentralized and autonomous local government, for both democratic and associational reasons, but also reflect an understanding of the role of political space in defining local government. By making local boundaries more permeable in both a political and an economic sense, we will create local governments that more accurately reflect the needs and desires of a democratic citizenry.

3. *The Voting Rights Act and Gomillion*. — In *Gomillion v. Lightfoot*,¹⁹³ the Supreme Court held that local boundaries could not be redrawn for the purpose of excluding racial minorities. The case concerned the Alabama legislature's redrawing of the boundaries of Tuskegee so as to exclude blacks from the jurisdiction.¹⁹⁴ The Court held that this repositioning of the local boundaries violated the black plaintiffs' Fifteenth Amendment rights.¹⁹⁵ *Gomillion* may have broad consequences for local autonomy:

[The plaintiffs'] only claim was a disenfranchisement from Tuskegee elections. . . . But only residents of Tuskegee have a right to vote in Tuskegee elections, and the state, by redrawing Tuskegee's borders, had made them nonresidents. Traditional doctrine was that the state had the unlimited authority to determine municipal boundaries The finding of a fifteenth amendment violation suggests . . . that [the plaintiffs] had a right to be members of the territorial and political community known as Tuskegee.¹⁹⁶

Gomillion's full force was long limited by the requirement that plaintiffs asserting Fifteenth Amendment or Voting Rights Act claims prove

¹⁹² This reform follows Professor Tribe's insight that exclusionary zoning may deprive poor persons of the right to vote in suburban elections by effectively denying them residency. See TRIBE, *supra* note 86, § 13-13, at 1091. By relaxing the residency requirement for voting, this problem is eliminated. The fourth reform is thus different in kind from the first three, because it actually challenges the notion of community self-definition by expanding the group that can define the community. This follows the recognition that separate localities are interconnected in both an economic and a political sense and follows my logic in exposing the tautology of community self-definition. See *supra* p. 1860.

I recognize that this reform assumes that inner-city governments act as a useful proxy for poor persons, not always a prudent assumption. But RCAs are premised on a city-versus-suburb model that may not be appropriate in some circumstances. The fourth reform could be subject to a number of modifications designed to resolve these difficulties. For example, transferring cities may complain that they deserve some voice in receiving-city elections if they are to fund fair-share housing in those cities on an ongoing basis. This could be accomplished by reciprocal transfers in which fair-share housing comes with votes in transferring-city elections while ongoing RCAs provide transferring cities with an equal number of votes in receiving-city elections.

¹⁹³ 364 U.S. 339 (1960).

¹⁹⁴ See *id.* at 341.

¹⁹⁵ See *id.* at 341-42.

¹⁹⁶ Briffault, *supra* note 44, at 86 n.363.

intentional discrimination. But in response to the Court's decision in *City of Mobile v. Bolden*,¹⁹⁷ Congress amended the Voting Rights Act to leave no doubt that any voting requirement or practice that has the effect of denying a protected class of citizens the right to vote, regardless of intent, violates the Act.¹⁹⁸

The elimination of the intent requirement may provide new avenues for challenging the residency requirement in local elections, or, alternatively, for challenging the position of local boundaries themselves. Consider the following: first, local boundaries have historically divided poor and often (by statistical proxy) minority communities from wealthier white communities and continue to do so; second, exclusionary zoning is a mechanism that, in effect if not by design, excludes minorities from white municipalities;¹⁹⁹ third, any policy that has the effect of denying minorities the right to vote violates the Voting Rights Act;²⁰⁰ and fourth, according to *Gomillion*, local boundaries that exclude minorities from a locality's political process violate the Fifteenth Amendment right to vote (now freed from its intent requirement by the amended Voting Rights Act). It follows that local elections must in some cases be opened to nonresidents,²⁰¹ or that local boundaries and local exclusionary zoning are in some cases impermissible.²⁰²

It can be no answer to such a claim that the local boundaries in question were established prior to the violation of voting rights and therefore deserve some sort of historically based deference. The most

¹⁹⁷ 446 U.S. 55, 62 (1980) (holding that "action by a State that is racially neutral on its face violates the Fifteenth Amendment only if motivated by a discriminatory purpose"). Earlier cases had left the discriminatory-purpose requirement ambiguous. See, e.g., *White v. Regester*, 412 U.S. 755, 764 (1973) (holding that minor population differences among legislative districts did not prove a constitutional violation); *Whitcomb v. Chavis*, 403 U.S. 124, 144 (1971) (noting that "the challenger [must] carry the burden of proving that multi-member districts unconstitutionally operate to dilute or cancel the voting strength of racial or political elements").

¹⁹⁸ See Voting Rights Act Amendments of 1982, Pub. L. No. 97-205, sec. 3, 96 Stat. 134, (codified as amended at 42 U.S.C. § 1973 (1988)).

¹⁹⁹ See *supra* pp. 1870-74; *TRIBE*, *supra* note 86, § 13-13, at 1091.

²⁰⁰ See 42 U.S.C. § 1973; *Thornburg v. Gingles*, 478 U.S. 30, 63 (1986).

²⁰¹ Professor Frug suggests just such a solution. See Gerald Frug, *Decentering Decentralization*, 60 U. CHI. L. REV. 253, 324-25 (1993).

²⁰² This analysis draws upon, but is slightly different from, Professor Tribe's observation that exclusionary zoning may implicate voting rights concerns. See *TRIBE*, *supra* note 86, § 16-20, at 1506-07. I would go even further, and argue that, in some cases, the local boundaries themselves may be open to attack. Consider, for example, a city that agrees to lift exclusionary zoning in response to a voting rights claim along the lines of Professor Tribe's suggestion, but that has already succeeded in developing all available land for single-family homes on large lots. The boundaries themselves now deprive minorities of the franchise. Nor can minority voters' claims be dismissed with the observation that over time they may be able to purchase land in the jurisdiction and establish higher-density housing. The plaintiffs in *Gomillion* were not told that over time they might be able to move into the new Tuskegee. "Maybe later" is not an acceptable response to a voting rights claim.

plausible meaning of the voting rights cases²⁰³ is that jurisdictional boundaries that deprive minorities of the franchise are impermissible, and if boundaries were once permissible but, as a result of demographic shifts, are no longer permissible, they must be changed. Moreover, in many cases the local boundaries were established with the intent of segregating minorities.²⁰⁴ Thus, *Gomillion* and the Voting Rights Act taken together form a body of law that recognizes the plasticity of political boundaries and demands that those boundaries not exclude racial minorities from political participation in established communities.

4. *Political Boundaries as Segregation, and Privatization as the Collapse of Public Space.* — The proliferation of private entities that serve what are traditionally public functions has become such an accepted feature of American society that it often elicits little in the way of comment or analysis. But privatization erodes the space in which democratic control can be exercised. Even as many advocate a government that is run like a private business, private entities are performing governmental functions. The trend of privatization may seem to have little relevance for our discussion of racially identified spaces, but in fact privatization may be seen as the ultimate boundary manipulation: rather than a boundary shift that disenfranchises a particular group, as in *Gomillion*, privatization collapses the boundaries of public space entirely. No democratic principle or right to political participation attaches, and the private entity may construct a governmental system on any terms it wishes.

Fortunately, there is precedent for the conclusion that privatization is impermissible when it serves to disenfranchise or exclude racial minorities. The courts have been aware that a strategy of privatization is similar in effect to an impermissible boundary shift taken to the extreme. Thus, in *Griffin v. County School Board*,²⁰⁵ the Supreme Court struck down a decision by a county to close its public schools in favor of a wholly private system of education rather than comply with a desegregation order.²⁰⁶ Later, in *Wright v. Council of Emporia*,²⁰⁷ the Court held that local officials could be enjoined from carving a new school district from an existing district that had not

²⁰³ See *Thornburg*, 478 U.S. at 63; *White v. Regester*, 412 U.S. 755, 764 (1973); *Whitcomb v. Chavis*, 403 U.S. 124, 144 (1971); *Gomillion v. Lightfoot*, 364 U.S. 339, 341-42 (1960).

²⁰⁴ See JACKSON, *supra* note 9, at 150-51 (observing that the development of incorporated suburbs was motivated by the desire of middle-class whites to distance themselves from immigrant groups and especially from blacks); SAM B. WARNER, JR., *STREETCAR SUBURBS: THE PROCESS OF GROWTH IN BOSTON, 1870-1900*, at 164 (1962) (stating that a perceived benefit of municipal incorporation was that "independent suburban towns could [be] . . . free from . . . waves of incoming poor immigrants").

²⁰⁵ 377 U.S. 218 (1964).

²⁰⁶ See *id.* at 225.

²⁰⁷ 407 U.S. 451 (1972).

yet been desegregated.²⁰⁸ Specifically, the Court held that the redistricting would constitute an invitation to "white flight" because the new district would have a significantly higher percentage of white residents and would enjoy facilities superior to those of the previous, larger district.²⁰⁹

Griffin and *Wright* taken together demonstrate the functional similarity of privatization and jurisdictional boundary shifts in the context of racialized space. In both cases, the Court recognized that desegregation could not occur if governments were allowed to manipulate the geographic areas in which the remedial measure would occur, either by eliminating such areas entirely, as in *Griffin*, or by cordoning off the areas to be desegregated, as in *Wright*.²¹⁰

C. Toward the Democratic City: An Itinerary for Spatial Policy and Jurisprudence

Today the majority of Americans live in large cities or their suburbs.²¹¹ Any attempt to reform or revive democracy will have to operate first and foremost in an urban context — a context of anon-

²⁰⁸ See *id.* at 462.

²⁰⁹ See *id.* at 463–66.

²¹⁰ There are many cases in which the Court makes no such recognition. Foremost among these are *Keyes v. School Dist. No. 1*, 413 U.S. 189 (1973), in which the Court held that only de jure segregation constitutes a violation of equal protection, see *id.* at 208–09, and of course *Milliken v. Bradley*, 418 U.S. 717 (1974), discussed above at pp. 1874–76, in which the Court restricted interdistrict desegregation remedies, see *id.* at 741–42. In both *Keyes* and *Milliken* the Court's reified conception of political spaces led it to ignore geographically segregative state action and to focus instead on a narrative in which some original state action leads to segregation that persists until some later time. As I have argued above, see *supra* pp. 1875–76, *Milliken* is a prime example of racially identified space superimposed on and reinforced by reified political boundaries. The key distinction between *Wright*, in which segregation was found to violate equal protection, and *Milliken*, in which it was held to be irremediable, is time. Both cases involved a metropolitan area in which multiple school districts would replicate a pattern of segregation, but in *Wright* the separate and unequal school district was created after the desegregation order, see *Wright*, 407 U.S. at 455–57, whereas in *Milliken* the separate district was already in existence when the equal protection action was brought.

Keyes also reflects a spatial reification of sorts in that the de jure/de facto distinction assumes the judicial dominance of time (history) over space. In other words, time is the "dynamic" as opposed to "inert" element. This is another way of arguing that legal analysis sees time as predominant and space as the "mere context" of social action and conflict. By suggesting that de jure segregation is functionally distinct from de facto segregation, which is somehow "natural" or "private" in origin, the *Keyes* Court privileged an historical construction of state action, a narrative of temporal cause and effect, over a spatial construction that would examine the governmental actions (especially political borders and geographically defined powers and rights) that construct segregated spaces. This criticism of the de facto/de jure distinction is not new, see, e.g., *Keyes*, 413 U.S. at 252–53 (Powell, J. concurring in part and dissenting in part), although the spatial analysis is.

²¹¹ Most Americans live in metropolitan areas of one million or more inhabitants. See U.S. DEPT OF COMMERCE, STATISTICAL ABSTRACT OF THE UNITED STATES 35 (113th ed. 1993) [hereinafter STATISTICAL ABSTRACT].

ymous crowds, scarce real property, and a disorienting landscape. Suburbanization has only expanded the urban form: the "technoburb" (so named, not because the production of technology forms its employment base, but because the consumption of technology enables both its industrial and its social production to occur without centralization) has brought the city to the countryside in the same way the suburb was once thought to bring the countryside within easy reach of the city.²¹² Despite futile attempts to retain the look and feel of the pastoral — walled subdivisions of identical tract homes are given ersatz estate titles, each as ubiquitous as the hypothetical "Blackacre," and streets are carefully designed to take on the leisurely bends and turns of a country lane, an affectation that only intensifies the disorientation that is the hallmark of contemporary urban life — suburban life continues to mirror the urban, complete with alienation from both nature and neighbors, escalating property values and crime rates,²¹³ and the intrusion of the state or the corporation into more and more areas of social interaction.

But perhaps the most debilitating conditions of the contemporary metropolis are a function, not of its size, complexity, diversity, or even of the technology it has spawned and that has spawned it, but of our attempts to escape it, to deny the primacy of the urban — its functional imperatives, its visceral appeal, its aesthetic attractions. The nostalgia for pure space, for the pastoral ideal of homogeneous communities or the individual frontier, has led us to fragment our cities, to turn them into patchwork quilts made up of separate enclaves, each defined by a seam that binds as well as divides them.

It is common wisdom that the discontinuity of the city²¹⁴ breeds fear and hostility and that the relentless cacophony of the urban form thwarts the conditions of civil society. True as this may be, it is, ironically, too comfortable simply to reject the possibility of civil and civic ideals as incompatible with the irreducible difference of the

²¹² See generally ROBERT FISHMAN, *BOURGEOIS UTOPIAS: THE RISE AND FALL OF SUBURBIA* 4–6 (1987) (discussing the development of the suburb); WARNER, *supra* note 204, at 46–66 (same).

²¹³ According to the FBI Uniform Crime Report, the crime rate in urban areas was 28.1% in 1992, while the suburban crime rate was 21.4%. See Herbert Green, *Perception v. Reality: Analysis of Crime Statistics*, NATION'S CITIES WKLY., Feb. 21, 1994, at 5. Murder rates climbed in small towns and medium-sized cities as well as in urban centers. See Stephen Braun & Judy Pasternak, *A Nation with Peril on Its Mind: Crime Has Become the Top Concern of Many People*, L.A. TIMES, Feb. 13, 1994, at A1, A16; Judy Keen, *Beseiged by Crime*, USA TODAY, Jan. 15, 1994, at 1. Further, the perception of a rise in crime is greatest in small towns and suburban areas. See Braun & Pasternak, *supra*, at A16.

²¹⁴ See FREDRIC JAMESON, *POSTMODERNISM, OR, THE CULTURAL LOGIC OF LATE CAPITALISM* 43–44 (1991); CELESTE OLALQUIAGA, *MEGALOPOLIS* 34–35 (1992) (suggesting that spatial disorientation is a function of broader cultural characteristics of contemporary society, which promote a "detached perception [that] impedes direct experience"); RICHARD SENNETT, *THE CONSCIENCE OF THE EYE* 224–36 (1990).

urban.²¹⁵ We are increasingly adept at identifying our differences and declaring them insurmountable, but today "[p]erhaps . . . a more truly uncomfortable idea is that difference, discontinuity, and disorientation ought to be ethical forces which connect people to one another."²¹⁶ As more of America (and the world) becomes urban, with the racial, cultural, and ethical diversity that the urban includes, we must embrace the city as the site of democracy.

In order to achieve civic democracy and civility within culturally desegregated space, we must reject the view of city life as the quintessence of alienation and of the city as the social milieu of the atomistic subject. We must redescribe city life as a normative ideal, "a form of social relations [defined as] the being together of strangers."²¹⁷ Despite its problems, urban life does bring "glimpses" of what is best about a plural culture. In order to promote the creation of the humane city, rather than the alienating megalopolis, a positive vision of the urban is necessary. But before such a vision can become a reality (or even a compelling possibility) we must attend to political geography and to the position of racial minorities within our cities and within our democracy. These concerns animate the following admittedly sketchy and tentative proposals.

1. *Decentralized centers of power should be encouraged because they sustain both participatory democracy and communities of difference.* — Participatory politics cannot thrive in a mass democracy. If anything, local units need to become smaller to make meaningful political participation feasible. A centralized regional authority that encompasses several localities leaves little opportunity for politically empowered cultural communities to form and thrive. As the discussion of political theory above suggests, a centralized approach will

²¹⁵ By "irreducible difference" I mean "diversity" in the more pedestrian sense of "the student diversity movement," but I also mean to complicate this idea by suggesting a post-structuralism (this is what "irreducible difference" connotes). In the urban context, this notion of difference emerges in the advocacy of mixed (as opposed to segregated) uses in planning, an advocacy most eloquently represented by Jane Jacobs. See JANE JACOBS, *THE DEATH AND LIFE OF GREAT AMERICAN CITIES* 152-77, 222-38 (1961).

²¹⁶ SENNETT, *supra* note 214, at 226.

²¹⁷ YOUNG, *supra* note 138, at 237-38 (1990). Iris Marion Young offers an urban ideal in which different cultural groups can interact without assimilating, in which individuals can achieve autonomy without becoming generic or isolated:

In the city persons and groups interact within spaces and institutions they all experience themselves as belonging to, but without those interactions dissolving into unity or commonness. City life is composed of clusters of people with affinities — families, social group networks, voluntary associations, neighborhood networks, a vast array of small "communities." City dwellers frequently venture beyond such familiar enclaves, however, to the more open public of politics, commerce, and festival, where strangers meet and interact City dwellers are thus together, bound to one another in what should be, and sometimes is a single polity.

tend to conceive of communities of difference as special interests rather than as organic social groups.²¹⁸

Moreover, regional administration leaves little room for politically engaged communities to form. Decentralized power represents a tension, not an evil, for participatory politics. If we wish to nourish cultural difference, we will need communities with some degree of real control over their circumstances as a haven for cultural subgroups. Centralized government alienates citizens from the source of political decisionmaking and offers only interest group representation or parochial communities defined from the outside as much as from within.

2. *Local boundaries must be rendered permeable, in order to avoid the evils of parochialism and insularity.* — I propose semi-autonomous local governments with permeable boundaries. Under this proposal, local governments would retain authority over land-use planning and over the administration of most services currently conceived of as local, but boundaries would be rendered permeable in two ways. First, local elections would not be limited on the basis of residence, but instead would be open to all members of a metropolitan region or even to all citizens of a state. All local elections would be held on the same day and voters would receive a number of votes equal to the number of open seats, which they could cast in any election they wished.²¹⁹ Hence voters would effectively draw their own jurisdictional boundaries, decide which local governments were most important to them, and allocate their votes accordingly.

They [could] define their interests differently in different elections People are unlikely to vote in a jurisdiction they do not care about, but there are a host of possible motives for voting [T]he

²¹⁸ See *supra* p. 1889.

²¹⁹ See Frug, *supra* note 201, at 329–30. The use of cumulative voting is not an untried proposal. Not only do many corporations use such a scheme as a mechanism to protect minority shareholders, see ROBERT C. CLARK, *CORPORATE LAW* § 9.1.3, at 361–66 (1986); 5 WILLIAM M. FLETCHER, *FLETCHER CYCLOPEDIA OF THE LAW OF PRIVATE CORPORATIONS* § 2048 nn.10–11 (rev. perm. ed. 1987) (noting state constitutional and statutory provisions requiring cumulative voting in shareholder elections), but some intra-local elections (for multi-member boards) are also conducted in this manner, see Stephen Buckley, *Unusual Ruling in Rights Case*, WASH. POST, Apr. 6, 1994, at A1 (reporting a federal district court's decision to order Worcester County to employ cumulative voting in the election of county commissioners as an alternative to creating a majority black district). Frug's innovation is to propose that citizens would vote in jurisdictions in which they do not reside.

The most well-known advocate of cumulative voting is Professor Lani Guinier. See Lani Guinier, *No Two Seats: The Elusive Quest for Political Equality*, 77 VA. L. REV. 1413, 1500 n.297 (1991); Lani Guinier, *The Triumph of Tokenism: The Voting Rights Act and the Theory of Black Electoral Success*, 89 MICH. L. REV. 1077, 1139 (1991). Guinier points out that cumulative voting both “allows minority voters to make precise calculations as to how many representatives they can elect,” *id.* at 1139 n.299, and “foster[s] and reinforce[s] coalitions,” *id.* at 1139 n.300.

voting system might . . . mimic . . . proportional representation by allowing someone to cast all [of her] votes in one locality²²⁰

Second, "local" revenue (mainly property taxes) need not be retained by a particular locality. Instead, a state legislature or a regional administrative body could distribute the sum, according to egalitarian principles of need or state-prescribed goals of common good.²²¹ The centralization of revenue collection and distribution would address the *Mount Laurel* and *Rodriguez* concerns of unequal development and resulting unequal sources of revenue, and allow local governments to retain autonomy in decisions that directly affect community character, such as land-use and planning decisions.

Once we have ensured that local land-use decisions will affect neither tax revenues nor political inclusion, these decisions become less threatening to the goals of democratic inclusion and the empowerment of dissenting or presently disempowered communities. If a community wishes to zone for single-family residential construction on large lots, it will be less likely that the decision will have the effect (and often the motive) of erecting a self-perpetuating structure that excludes the needy or dissenters from local citizenship. If homogeneity is still such a powerful goal after these non-associational motives have been eliminated, so be it. In many cases few "outsiders" would wish to live in such a community in any event, and if they did they could bring political pressure to bear on the homogeneous community for less exclusionary zoning practices.

3. *Local boundaries should be more easily amended in order to respond to demographic and affiliational shifts.* — Because many decisions would continue to be made at the local level, the shape of local boundaries would remain important. Reified conceptions of community or local government that remove the placement of boundaries from democratic control are incompatible with cultural desegregation. I recommend instead institutional procedures for varying local bound-

²²⁰ See Frug, *supra* note 201, at 329–30.

²²¹ There are, of course, reasons for preferring one approach to the other. Frug suggests a regional legislature with the specific and limited purpose of allocating entitlements to local governments. See *id.* at 295. The electoral structure recalls Young's proposal for a regional government, see YOUNG, *supra* note 138, at 252–55, but because the function of the regional legislature in Frug's proposal would be limited, the problems of centralization and alienation would be less acute. I share Frug's desire to decentralize and democratize these important public-funding issues, but I would embrace a regional legislature on his model only as a supplement to permeable local boundaries, not as an alternative. This may, however, create too many layers of government, leading to voter confusion and friction in administration. If forced to choose, I would favor permeable local boundaries on the at-large cumulative voting model and leave distribution of funds to the state bodies, or throw the distributional questions to the electorate in referenda. A discussion of the pros and cons of these proposals is beyond the scope of this Article.

aries — dissolving those that no longer reflect true communities, and establishing new boundaries as new communities form.

Boundary changes could proceed through a combination of referenda and an at-large cumulative voting system. At specified intervals (every ten years perhaps) a special referendum for boundary changes would be held. A petition of interested parties could begin a boundary-change procedure with a specified minimum number of signatures. Voters would receive a number of votes equal to the number of proposed boundary changes in the referendum, and could allocate them according to their preferences. A simple yes/no vote on each proposed change would determine whether the change would take effect.

The system would rely on the pooling of boundary questions in one election; thus voters would not “waste” their votes on questions of little importance to them, while voters who were profoundly affected by a particular boundary question might forego less important questions to concentrate all of their votes on the question of greatest importance, reflecting a modified form of proportional representation. In such a system, grassroots community organizing would become more effective, and strategic mass advertising less effective.²²² The impact of advertising could also be kept to a minimum by appropriate regulations and by ensuring that enough questions were presented in each boundary referendum so that the cumulative voting scheme would serve its proportional representation function.

The system could be adjusted to eliminate anomalies or inequities: thus if certain boundary changes occurred too rapidly (say, too many ill-conceived annexations), super-majority requirements could be imposed for those types of changes. If boundary changes proved too volatile overall, super-majorities could be required for any change, or the minimum signature requirement to put a change on the ballot could be increased.²²³

4. *Any geographic entity that exercises quasi-governmental functions should be subject to democratic control.* — Because geographic associations exercise control over their members and over outsiders by

²²² It would be important to prevent a “strategic” use of referendum questions by groups with superior resources, designed to dilute the votes of target communities by introducing multiple questions that affect them. Thus boundary referenda should occur often enough to reflect significant demographic and associational shifts, but not so often as to deplete the human and material resources necessary for every community to mount an effective petition drive and campaign for its proposed changes.

²²³ It may be necessary to have some administrative oversight of boundaries referenda in order to avoid conflicting proposed boundary changes — a proposed annexation may, for example, be in conflict with a proposed secession, and under cumulative voting both may be approved. A boundary-referendum oversight board could determine how to resolve such conflicts — either through mediation or by instituting procedures that would disallow all but one of any conflicting boundary proposals before the referendum was held.

way of government enforcement of their internal rules, these associations should be subject to the type of democratic procedures I have outlined, regardless of any asserted private status. Although there are numerous "borderline" cases, which may be subjected to limited democratic control, the principles of democracy are ill-served by allowing entities that act as governments to avoid democratic control simply because they came into existence by contract rather than by legislation.²²⁴ Such governments embody all the evils of parochialism — selfish monopolization of resources, insularity, and coercion of dissenters — that the courts in *Arlington Heights*,²²⁵ *Moore*,²²⁶ *Belle Terre*,²²⁷ and *Mount Laurel*²²⁸ attempted to address and mediate. They embody the misconceptions of political geography and the resulting perversions of democracy that figured in *Eubank*,²²⁹ *Roberge*,²³⁰ *Holt*,²³¹ *Kraemer*,²³² *Cipriano*,²³³ and *Gomillion*.²³⁴ Participatory politics will be powerless to change the controlling structure of racial political geography if the democratic process remains unable to affect the private governments that regulate a growing portion of spaces where so many people sleep, work, and obtain the necessities of life.²³⁵

²²⁴ Indeed, as Frug points out, "private" entities (homeowners associations, shopping and commercial centers, industrial parks, airports) require governmental enforcement of their rules and often even enabling legislation and public subsidies to come into existence, while many "public" entities (cities) are the product of contracts between individuals. See Frug, *supra* note 131, at 1590-91. Michelman has suggested a potential legal basis for democratic supervision of private entities in a "right to politics." See Michelman, *supra* note 149, at 488-89; *infra* note 235.

²²⁵ *Village of Arlington Heights v. Metropolitan Hous. Dev. Corp.*, 429 U.S. 252, 268-71 (1977).

²²⁶ *Moore v. City of East Cleveland*, 431 U.S. 494, 498-500 (1977).

²²⁷ *Village of Belle Terre v. Boraas*, 416 U.S. 1, 6-9 (1974).

²²⁸ *Southern Burlington County NAACP v. Township of Mount Laurel (Mount Laurel II)*, 456 A.2d 390, 415-17 (N.J. 1983); *Southern Burlington County NAACP v. Township of Mount Laurel (Mount Laurel I)*, 336 A.2d 713 (N.J.), *cert denied*, 423 U.S. 808 (1975); see also *Hills Dev. Co. v. Bernards Township (Mount Laurel III)*, 510 A.2d 621 (N.J. 1986) (testing the constitutionality of the legislative response to *Mount Laurel*).

²²⁹ *Eubank v. City of Richmond*, 226 U.S. 137, 143-44 (1912).

²³⁰ *Seattle Title Trust Co. v. Roberge*, 278 U.S. 116, 119-21 (1928).

²³¹ *Holt Civic Club v. City of Tuscaloosa*, 439 U.S. 60, 66-75 (1978).

²³² *Shelley v. Kraemer*, 334 U.S. 1, 21-22 (1948).

²³³ *Cipriano v. City of Houma*, 395 U.S. 701, 704-06 (1969).

²³⁴ *Gomillion v. Lightfoot*, 364 U.S. 339, 342-45 (1960).

²³⁵ This proposal echoes the notion of a positive "right to politics," as opposed to an essentially negative right to "equal footing" — the "interest in not being excluded from whatever electoral politics in fact go on around one." Michelman, *supra* note 149, at 488-89. Michelman tells us that a right to politics has never been articulated by the Supreme Court, see *id.* at 488, although the Court came close in *Gomillion*, at least in the context of racial minorities. Because *Gomillion* involved a public entity, it does not establish Michelman's right to politics, but it does suggest principles for rejecting the privatization of traditionally public functions or for requiring private entities to adhere to certain democratic and pluralist principles, at least when issues of race are

This proposal would not lead to a tragedy of the commons or a confiscation of property. Developers and business interests would have a powerful voice in such decisions, not only through the vote, but also through economic pressure: a community that refused to allow reasonable restrictions in the construction of housing developments would probably be unable to attract any new housing. But the tenants of such developments would also have a say. To take an example, if a majority of interested parties did not wish to see demonstrators within the association, they could vote to keep demonstrators out (within constitutional limitations). But if the community valued the association as a social gathering place, a free space for civic interaction, they might insist on unfettered political speech.

*D. Cultural Desegregation: Toward a
Legal Practice of Culturally Plural Political Space*

1. *Desegregation v. Integration.* — My discussion of racially identified spaces has been critical of the political boundaries that define these spaces. I have argued that contemporary society, through the mechanism of law, creates and perpetuates racially identified spaces without doing so explicitly. Thus, no attempt is made to justify the political spaces that are so perpetuated. Many readers may take my critique of racialized space as a call for a planned program of spatial integration, such as the systematic dispersal of inner-city minority populations to the suburbs with mandatory busing to maintain public school integration. But this type of integration assumes the *existence* of racialized space, space that needs to be integrated. Through the elimination of racially identified space, we may find that some of the classic centralized methods of racial integration are no longer necessary or desirable.

If one accepts the importance of political geography, one might object that the reforms proposed in this Article will disrupt established communities and introduce elements of uncertainty and instability by removing the system that allowed these communities to come into existence. Political spaces create cultural communities; an implicit part of my thesis is that space, at least as much as time, is responsible for racial/cultural identity. Even for those members of a racial group who do not live in a racially identified space, the existence of such a space is central to their identity.²³⁶ Hence, to decenter racially identified space is to some extent to decenter racial identity.

involved. I believe, racial issues are involved more often than many would imagine; if so, under this principle most private government-type entities would likely be democratized.

²³⁶ Anyone who doubts the importance of a geographical cultural base need only look to the immigrant and racially identified communities who reconstruct a racio-national space within their (new) home country and who look toward their ancestral homeland long after any tangible

The foregoing analysis should make clear that no political system, including the current one, can remain neutral in the face of the social construction of geography; no system can simply reflect or accommodate "individual choice" as to residence and geographic association; no system is without some systemic bias. Because a truly neutral system is impossible, we must rewrite the laws to *favor*, rather than to obstruct, racial and class desegregation.²³⁷

A system of desegregated spaces would certainly result in fewer homogeneous spaces and more integrated ones, but such a system is different from the classic model of integration in two important respects. First, it does not impose a particular pattern of integration, but rather removes the impediments to a more fluid movement of persons and groups within and between political spaces. Second, this model does not accept the current manifestation of political space and simply attempt to "shuffle the demographic deck" to produce a statistical integration, but rather challenges the mechanism by which political spaces are created and maintained, and by extension, challenges one of the mechanisms by which racial and cultural²³⁸ hierarchies are maintained.

connections have disintegrated. Consider the emotional bond of Miami Cubans to a Cuba that is unlikely to accept them within this century and that is undoubtedly far less familiar to many of them than is Southern Florida. See generally DAVID RIEFF, *THE EXILE* (1993). Or consider the ties that bind American Jews to Israel despite, in many cases, the lack of any personal or familial connection, or any plans to relocate there. Consider also the creation of mythical or quasi-mythical homelands when no real-world racial space is available, such as Atzlan for Latinos and the mythologized Africa of much "Afrocentric" thought, which bears little resemblance to any part of Africa that exists or has ever existed in history. Racially identified urban spaces are, in this sense, a microcosm of the nationalist homeland ideology projected onto the geography of the metropolis. See Richard T. Ford, *Urban Space and the Color Line: The Consequences of Demarcation and Disorientation in the Postmodern Metropolis*, 9 HARV. BLACKLETTER J. 117, 132-33 (1992).

²³⁷ The loss of the elements of racial identity that are a function of segregation may be a partially positive development. I reject the "culture of poverty" thesis, which often attempts to explain the conditions of the underclass without acknowledging the role of the structural bias and inequity of which residential segregation is the linchpin. See DANIEL P. MOYNIHAN, U.S. DEPT OF LABOR, *THE NEGRO FAMILY: THE CASE FOR NATIONAL ACTION* 29-30 (1965), reprinted in LEE RAINWATER & WILLIAM L. YANCEY, *THE MOYNIHAN REPORT AND THE POLITICS OF CONTROVERSY* 39, 75-76 (1967). The idea of a harmful and debilitating "culture of segregation," by contrast, has much to recommend it. As Massey and Denton argue: "residential segregation has been instrumental in creating a structural niche within which a deleterious set of attitudes and behaviors . . . has arisen and flourished. . . . [These] attitudes and behaviors . . . are antithetical and often hostile to success in the larger economy." MASSEY & DENTON, *supra* note 1, at 8. To the extent that racial identity reflects the debilitating and desperate conditions of segregation that have been imposed on the urban poor, it is nothing to celebrate. The sort of loss of cultural cohesion that might occur due to desegregation would only be a loss of mutual shackles and chains.

²³⁸ I use "culture" as shorthand for "race and culture," for, although culture is not an adequate proxy for race, it is an adequate proxy for the associational and affiliational aspects of race and for those manifestations of racial identity that we should wish to preserve.

Thus, cultural desegregation is both more mild and more radical than classic integrationism. It is more mild because it does not mandate integration as an end: group cohesion may exist even in the absence of spatially enforced racial segregation such that no significant increase in statistical integration will occur. Indeed, I imagine that spatially defined cultural communities that have experienced the exodus of many of their wealthier members (many of whom exit, not due to a desire to assimilate, but for economic reasons) would experience an increase in group cohesiveness, either because the middle and upper classes would return to culturally defined neighborhoods in the absence of economic and political disincentives, or because, as spatial boundaries become more permeable, geography would become a less important part of community definition. Individuals could be part of a political community that is geographically dispersed, even as many are now a part of dispersed cultural communities.²³⁹ Desegregated space would encourage cultural cohesion by rendering racialized political boundaries more permeable, thus allowing members of culturally distinct communities to act on their cultural connections regardless of where they happen to reside.²⁴⁰

But in this latter sense, cultural desegregation is also more radical than integrationism. Cultural desegregation insists that cultural associations be respected and encouraged regardless of the spatial dispersal of their members. It rejects both the assimilationist notion that individuals should aspire to become members of some imperial master culture, and leave their cultural identity behind in order to gain acceptance by "society-at-large,"²⁴¹ and the separatist notion that only

²³⁹ I am thinking particularly (but not exclusively) of African-Americans who may leave disempowered, predominantly black neighborhoods in search of better employment opportunities, superior schools and public services, stable property values, and so on. Many (I would venture most) of these individuals still feel culturally and emotionally connected to black neighborhoods. Further, they have many political interests in common with most blacks and, in many cases, with other racial minorities, political interests that the present system of politically racialized spaces makes it difficult to express effectively.

²⁴⁰ Eliminating residence as a criterion for cultural-political affiliation seems imperative for anyone who takes cultural pluralism seriously. Given the rapid mobility of persons in contemporary society, cultural cohesion is rendered radically less likely if significant forms of cultural identification require one to stay put or to limit one's possible places of residence. The promise of fair housing is lost if one accepts that cultural identification and residential freedom are mutually exclusive. One may insist that cultural identification need not extend to political affiliations, but this seems to me an impoverished understanding of culture. Culture consists not only of private social practices, insular customs, and personal associations, but also of ways of interacting with and shaping the world. As I will elaborate below, *see infra* pp. 1916-17, an autarchic culture seems to me an impossibility, a contradiction in terms.

²⁴¹ I am always troubled by my loss of eloquence when I attempt to describe what I and many others clumsily refer to as the "dominant culture," "the broader society" (as if the culture of most of the world is somehow narrow), or, worst of all, "white culture." I am most certainly referring to something by way of these terms, something I vaguely imagine resides in windowless rooms in oak-paneled estates near New Haven or Cambridge (Massachusetts or England, you

through geographic consolidation and cultural autarchy can people of color hope to avoid cultural genocide (or suicide).

2. *Desegregated Cultural Identity*. — Cultural desegregation aspires to a society in which cultural identity is dynamic in its definition and in which cultural communities are fluid but not amorphous. These two ideals are linked in a paradox: because cultural identity is established only in the context of a community or association, the position of cultural associations is critical to the formation of cultural identity; there is no individual cultural identity, for culture implies a community. At the same time, cultural specificity must imply an interaction with other cultures. A culture has a specific character only in that it is unlike other cultures with which it compares itself through interaction. But interaction with other cultures will change a cultural community, and in some sense reduce its specificity. This paradox gives rise to fear of assimilation and inspires some to advocate cultural autarchy.

The solution to this paradox lies in understanding culture as a context, a community of meaning, rather than as a static entity or identity. A cultural community exists in a symbiotic relationship both with its members and with "outsiders." It can neither totally shape its members, nor can it completely exclude outsiders. But this does not mean that the community is nothing more than the aggregation of its individual members; a cultural community has autonomy in that it can exert influence over individual members, construct morality, values and desires, and provide an epistemological framework for its members. One may understand culture "to refer to the cultural community, or cultural structure, itself. On this view, the cultural community continues to exist even when its members are free to modify the character of the culture"²⁴²

If this understanding is correct, culture is not threatened by internal dissent, outside influences, eventual transformation, nor even by the exit of certain members, just as the character of a democratic government is not threatened by changes in administration. To be sure, some changes are for the better and some for the worse, and some changes may indeed threaten the very structure of the culture, just as McCarthyism and the Imperial Presidency were thought to threaten the very structure of American democracy. But the process of change itself is not to be feared. In fact, it is to be welcomed, for

decide). Still, I know of few people of any race who truly belong to this "dominant" culture. It seems to me that this dominant culture is dominant only in that it dominates our collective psyche as a nation — it is a phantasm that haunts American social life, it goes "bump" in the night even as Americans listen to the blues and jazz, mambo and mariachi, eat kimchi and tapas, read Amy Tan and James Baldwin. It is time we exorcise this phantasmal dominant culture once and for all and embrace the multi-cultural mosaic that has always been America.

²⁴² KYMLICKA, *supra* note 151, at 167.

it is a part of the life of a culture. Although there are certainly distinct cultural communities, the boundaries between them often are a good deal more permeable than most discussions of cultural pluralism and cultural membership would suggest.²⁴³

3. *Cultural Identity in Desegregated Space.* — Cultural associations are among the groups that exercise power, both formally and informally, through their control of physical spaces. Although the link between race and culture is not direct or unproblematic (and is beyond the scope of this Article), we can identify this link in the creation and maintenance of racially identified spaces, occupied by racial and cultural communities.²⁴⁴

As the tautology of community self-definition demonstrates, it is impossible for any community truly to determine its own identity. Hence the desegregation of political space cannot provide an atmosphere of unmediated "free choice" for racial and cultural identity formation. What desegregation can do is level the hierarchies of racial and cultural identity so that presently disempowered and subordinated communities are no longer systematically deprived of the political and economic resources that would allow them to thrive rather than merely to survive, and so that such communities can more readily interact with American society as a whole.

Desegregation will undoubtedly alter the character of all racial communities; white communities are defined in part by their position of privilege while minority communities are defined in part by their subordination and isolation. But it is unclear exactly what the result of desegregation will be for established racial and cultural groups. Some groups may experience dispersal and disintegration, as ethnic white communities have in many parts of the nation. Some groups may grow stronger and more cohesive as their members gain greater resources and feel less economic pressure to leave racially identified neighborhoods and cities, while those who do leave will be able to

²⁴³ But this is not to say that the boundaries between races are permeable: this is perhaps a critical distinction between race and culture. Racial identity is imagined to be natural and genetically determined, and though it is neither, it is enforced through naturalized mechanisms such as economic stratification, social-caste hierarchy, and of course, political and social geography. Culture is either imagined to flow from race as a natural predisposition (Latinos like sun, salsa, and chili peppers, Slavs like snow, ballet, and vodka) or conversely imagined to be chosen to a degree that it simply is not, and cannot be (minorities can choose to assimilate or to remain culturally separate purely as a matter of opportunism, pragmatism or ideological commitment). To the extent that cultural boundaries are permeable, it is a matter not of "free choice," but rather of the blending of cultures inherent in a multi-cultural society joined by the mass media and commerce.

²⁴⁴ This link between race and culture allows me to refer to the two somewhat interchangeably. I have generally used "race" to denote a social complex that includes culture, a provisionally historical group identity, morphological distinctiveness, and spatial concentration. "Culture" refers exclusively to the shared norms, social practices, artistic heritage, and in some cases, language, of a particular (in my use, racial) group.

experience group solidarity that does not depend on geographic proximity. New but distinct cultural communities may form as permeable political borders allow social, political, artistic, and educational alliances between previously isolated communities to develop.²⁴⁵ Whatever the result, it will reflect a form of cultural association and pluralism that is more consistent with the best of American democratic ideals.

IV. CONCLUSION: THE BOUNDARIES OF RACE

This Article has attempted to bring several distinct discourses to bear on the persistent issue of race relations and racial segregation in the United States. I have employed political economy and political geography, realist legal analytics,²⁴⁶ ideal and nonideal normative political and social theory,²⁴⁷ critical legal theory²⁴⁸ and critical race theory,²⁴⁹ and a light dash of both postmodernist social theory²⁵⁰ and urbanist theory.²⁵¹ My focus herein has been necessarily sweeping and has, I fear, often sacrificed detail for breadth. Every discourse I have employed has a long academic tradition in which countless scholars have probed many of the issues I have raised in much greater depth than this Article could allow. My goal here is to bring the insights of these various conversations together in order to demonstrate that racial segregation is a consequence of law and policy, that it can be changed by law and policy, and that there is ample precedent in American legal and political thought for the types of changes that would dramatically decrease the degree of segregation in America and its cities.

Because my approach herein has been to insist on the importance of socially constructed space in understanding race relations, social

²⁴⁵ I believe that the latter two outcomes would result more often than the former, but I cannot prove it.

²⁴⁶ For a discussion of legal realism, see generally Joseph W. Singer, *Legal Realism Now*, 76 CAL. L. REV. 465 (1988).

²⁴⁷ "By nonideal theory I mean a normative theory that takes into account the uncertainties and complexities of actual practice; that descends from the realm of neat generality to the realm of messy particulars." MARGARET J. RADIN, REINTERPRETING PROPERTY 73-74 (1993) (footnote omitted).

²⁴⁸ For general accounts of critical legal theory, see MARK KELMAN, A GUIDE TO CRITICAL LEGAL STUDIES (1987); ROBERTO M. UNGER, THE CRITICAL LEGAL STUDIES MOVEMENT (1986).

²⁴⁹ For a general account of critical race theory, see MARI J. MATSUDA, CHARLES R. LAWRENCE III, RICHARD DELGADO & KIMBERLÈ W. CRENSHAW, WORDS THAT WOUND: CRITICAL RACE THEORY, ASSAULTIVE SPEECH, AND THE FIRST AMENDMENT 3-7 (1993).

²⁵⁰ The theorist who best articulates what I find most useful in postmodernist theory is Jameson. See JAMESON, *supra* note 214.

²⁵¹ What I call urbanist theory is exemplified by Jane Jacobs, see JANE JACOBS, CITIES AND THE WEALTH OF NATIONS (1984); JACOBS, *supra* note 215, and Lewis Mumford, see LEWIS MUMFORD, THE CITY IN HISTORY (1961).

policy, and legal doctrine, it seems appropriate to provide a spatial schematic for the major pieces of my argument. The chart that appears in the Appendix to this Article is an admittedly rough (but of course no map is entirely accurate) depiction of the relationship between the conceptions of political geography, doctrine, policy, and normative theory I have discussed.

This Article is the beginning of what I hope will be an ongoing project. It probably raises more questions than it answers. I would like to have discussed in much greater detail such questions as the role of political space in the social construction of racial identity and the consequences of political space for identity politics and identity communitarianism, the complexities of all the policy proposals I have advanced, and the importance of changes in the economic structure and cultural logic of late twentieth century America for contemporary racial (and spatial) relations. But these questions are for another space.

A note on methodology may now be in order. One objection to the relentlessly structural analysis that I have employed is that it devalues human agency and individual morality — that by focusing on structures one downplays the personal responsibility of flesh-and-blood people for social inequity. Some may well object that I let racists “off the hook” by proposing that political and economic institutions make racism inevitable. It is not my intention to supplant a strictly moral argument against racist practices, but instead to augment such an argument. I do not know what evil lurks in the hearts of men and women. But I do believe that the existing structure of what I have dubbed “racially identified political space” is likely to encourage even good men and women to perpetuate racial hierarchy. We need moral condemnation of racism, but we also need viable solutions. I do not intend this Article to in any way stifle the former; I hope it may contribute to identifying the latter.

We need solutions now. The threat of a racially fragmented metropolis and nation looms large on the horizon. The United States is rapidly fulfilling the grim prophesy of the Kerner Commission and becoming *at least* “two societies, one black, one white — separate and unequal.”²⁵² Race relations are at a low ebb, a circumstance that contributes to the declining desirability of life in racially diverse urban areas. But at the same time, the 1990 census shows, for the first time, that more than half of all Americans live in megacities — metropolitan areas of more than one million inhabitants.²⁵³ To survive and thrive in the metropolis that is America, we must attend to matters of race and of political space; it is not only space as much as

²⁵² U.S. ADVISORY COMM’N ON CIVIL DISORDERS, REPORT I (1968).

²⁵³ See STATISTICAL ABSTRACT, *supra* note 211, at 35.

time that hides consequences from us, but it is also location as much as history that defines us. If, as Douglas Massey and Nancy Denton assert, segregation is the missing link in previous attempts to explain the conditions of the underclass,²⁵⁴ then political geography is the missing element in attempts to reconcile the ideals of majoritarian democracy and private property with those of racial equality and cultural autonomy. The question of political space is not one of narrow concern, the province of cartographers and surveyors; it is also the domain of the "democratic idealist,"²⁵⁵ the activist lawyer, and the scholar of jurisprudence. Most of all it is the domain of every citizen who believes in the experiment of self-government. The study of political space reveals that "We the People" is not a given, but a contested community in a democratic society. The recognition that political spaces are often racially identified reveals that the boundaries of a democracy share territory with the boundaries of race.

²⁵⁴ See MASSEY & DENTON, *supra* note 1, *passim*.

²⁵⁵ I borrow this term from Professor Lani Guinier. See LANI GUINIER, *THE TYRANNY OF THE MAJORITY* *passim* (1994).

APPENDIX

